Keith Wright

From: Fawn Elizabeth Zion [redacted]
Sent: Friday, September 25, 2026 2:49 PM
To: CJ ORR; County Commissioners Court; CA ORR
Subject: B_Angelina_County_Data_Center_Records

Fawn Elizabeth Zion
East Texas Legacy Coalition
[redacted] · [redacted] · [redacted] Lufkin, Texas 75901]

Date: 09-25-2026

To: Public Information Officer, Angelina County (copy: County Judge's office)

Subject: Public Information Act Request – Data Center Records

Pursuant to the Texas Public Information Act, Chapter 552 of the Texas Government Code, please provide electronic copies of the following records for January 1, 2025 through the date of this request.

Definitions. "The Companies" means AmpZ Champion Data Center Holdings LLC (including Amp Z and Project Lufkin); EPG Champion Development LLC (including managing partner Raine Cotton); HyperDataGrid; 1606 Corp.; Exacore LLC; Wattbridge Texas LLC; Long Leaf Generating LLC; and any affiliate, agent, broker, or consultant acting for them. "The sites" and "either site" mean:

- **Amp Z site:** former Southland Paper Mill property, State Highway 103 East, Angelina County. Angelina CAD Property ID(s), if known: _____
- **HyperDataGrid site:** former Northern Chip Mill property, Ben Dunn Road / State Highway 103 West, Angelina County. Angelina CAD Property ID(s), if known: _____

Records requested

1. Any road use agreement, draft or executed, with the Companies, and related correspondence.
2. Any tax abatement application, draft agreement, or reinvestment zone designation involving either site or the Companies, including drafts prepared by or exchanged with Allison, Bass & Magee, LLP, the firm's engagement agreement with the County, and invoices for that work; and the executed Long Leaf Generating LLC tax abatement agreement approved in May 2025.
3. Resolution 010-26 and any supporting materials.
4. Any on-site sewage facility (septic) permit, floodplain development permit, or other county permit applied for or issued for either site.
5. Any records of the encroachment easement filed May 13, 2025 from Oncor Electric Delivery Company to Exacore LLC.
6. Correspondence, including emails and text messages, between the County Judge, Commissioners, or county staff and the Companies.

7. Records of the November 7, 2025 meeting about the proposed data center at the former paper mill, including invitations, attendee lists, presentations, handouts, and notes.
8. The email Raine Cotton sent to meeting attendees on or about November 12, 2025, with its attached form letter; any letter of support or endorsement signed by the County Judge, any Commissioner, or county staff; and records showing where and when each was sent.
9. Any records concerning the Companies or the project that the County has released to any other requestor, including The Lufkin Daily News. This includes every public information request submitted by Ruben Ibarra Jr. or The Lufkin Daily News concerning the Companies or the project, the County's written responses to those requests, all records released in response, and any request to the Office of the Attorney General to withhold records from those requests, with the resulting rulings.

I prefer electronic copies by email. If the estimated charges exceed $40, please send an itemized statement before proceeding.

Thank you,

Fawn Elizabeth Zion
East Texas Legacy Coalition

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ANGELINA COUNTY COMMISSIONERS COURT

RESOLUTION 010-26

SUPPORTING THE LIMITED REGULATORY AUTHORITY OF COUNTIES IN RURAL AREAS ON EMERGING TECHNOLOGIES INCLUDING DATA CENTERS AND BATTERY STORAGE FACILITIES

WHEREAS, Texas is a premier destination for innovation and our counties have long welcomed the tax base and economic growth that accompany digital and energy infrastructure; and

WHEREAS, The pace of data center and battery storage facility construction has exponentially increased across the United States and within the State of Texas; and

WHEREAS, local concerns have emerged across Texas regarding the potential adverse impacts of large-scale data center developments on surrounding communities, the environment, public health, consumer utility costs, land use compatibility, and strain on local infrastructure and resources; and

WHEREAS, the scale of emerging technologies has shifted from modest facilities to "gigawatt-scale" campuses, creating a regulatory gap at the county level that has become a significant liability for residents; and

WHEREAS, counties have no significant land use authority; and

WHEREAS, the 24/7 operation of large-scale cooling fans and backup generators creates low-frequency noise pollution, while large-scale battery installations present unique public safety challenges, including specialized emergency response requirements; impacting the health and property values of neighboring families; and

WHEREAS, a single data center facility can consume millions of gallons of water per day for evaporative cooling, and the potential for chemical runoff (in the event of a fire) from battery sites threatens local aquifers and utility resources in counties already managing depleted groundwater levels; and

WHEREAS, the frequent use of non-disclosure agreements (NDAs) prevents public transparency, leading to community distrust and unnecessary litigation when residents learn of massive projects only after permits are issued;

NOW, THEREFORE, BE IT RESOLVED that the Angelina County Commissioners Court requests that the Texas Legislature grant counties limited and specific authority to regulate emerging technologies including data center and battery energy storage developments including but not limited to the following:

1. Reasonable Buffer Zones & Noise Mitigation: Authority to mandate minimum setback requirements and sound-attenuation standards for facilities including battery enclosures and cooling units adjacent to residential or agricultural zones to protect the "quiet enjoyment" of Texas homes. Reasonable noise limitations and limits at the property line. The use of low-noise chiller systems and sound attenuated generator enclosures.
2. Light pollution standards based on the International Dark Sky standards to limit glare and spillover.
3. Water Availability & Resource Protection: Authority to require a certified Water Impact Statement and Environmental Safety Plan for high-load industrial users, granting counties the standing to negotiate water usage limits, alternative cooling technologies, or containment strategies for hazardous materials if a project threatens local water security, soil health, or agriculture sustainability.
4. Mandatory Public Hearing Process: Requirement for a public hearing process for any data center or battery storage facility exceeding a specific megawatt (MW) or megawatt-hour (MWh) threshold to ensure community engagement, coordination with local first responders, and a predictable path for development.
5. Construction techniques and materials to reduce thermal footprint and heat emissions.
6. Professionally designed landscape plan; tree canopy and vegetative screening.
7. Cooling systems, generators, and electrical equipment to be fully enclosed and/or visually screened.

NOW THEREFORE BE IT RESOLVED that the Angelina County Commissioners Court supports limited regulatory authority of counties in rural area on emerging technologies including data centers and battery storage facilities in order to reduce potential impacts on surrounding communities and neighborhoods, the environment, public health, land use compatibility and strain on local infrastructure and resources.

Adopted and approved this 14th day of July, 2026.

Keith N. Wright
County Judge

Tim Sprinkle, Comm. PCT 1

Kermit Kennedy, Comm. PCT 2

Tom Berry, Comm. PCT 3

Kenneth Jeffrey, Comm. PCT 4

COMMISSIONERS COURT ★ ANGELINA COUNTY TEXAS ★

ATTEST:
Amy Fincher, County Clerk

STATE OF TEXAS
COUNTY OF ANGELINA
I hereby certify that this instrument was FILED on the date and at the time stamped hereon by me and was duly RECORDED in the RECORDS of Angelina County, Texas
COUNTY CLERK
ANGELINA COUNTY TEXAS

FILED
AT 11 O'CLOCK A M
JUL 14 2026
AMY FINCHER
County Clerk, County Court at Law
Angelina County, Texas
By

Keith Wright

From: Tim Sprinkle
Sent: Tuesday, June 23, 2026 11:02 AM
To: Josh.may@hyperdatagrid.com
Cc: Keith Wright
Subject: Lufkin Texas Site

Good Morning Josh,

I hope all is well. I have included our County Judge, Mr. Keith Wright in this email as well. Please let this email serve as the expectations from an Angelina County perspective as it pertains to your future Lufkin Texas site.

Please see below for the 2 items that you need to be aware of as you are moving forward.

1) Angelina County requires a County Road Use Agreement for the Ben Dunn Road site. This agreement will be between you and the County of Angelina and will outline expectations moving forward. If you would like, we can draft an initial agreement of expectations. Please let me know if you would like us to draft the initial agreement.
2) You should check with the Pineywoods Ground Water Conservation District and make sure the existing water wells on site are properly permitted.

Please let me know if you have any questions or concerns as we move forward.

Angelina County
Commissioner Precinct 1
Tim Sprinkle
tsprinkle@angelinacounty.net

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Keith Wright

From: Trey Henderson <trey@hendersonmineral.com>
Sent: Wednesday, August 5, 2026 2:02 PM
To: Keith Wright
Subject: RE: Economic Development Form

Good deal.

Thanks!

From: Keith Wright <kwright@angelinacounty.net>
Sent: Wednesday, August 5, 2026 1:59 PM
To: Trey Henderson <trey@hendersonmineral.com>
Subject: FW: Economic Development Form

FYI

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Josh May <josh.may@hyperdatagrid.com>
Sent: Thursday, July 30, 2026 12:33 PM
To: Tim Sprinkle <tsprinkle@angelinacounty.net>
Cc: Keith Wright <kwright@angelinacounty.net>
Subject: Re: Economic Development Form

Tim, thanks for sending this over. We will get it completed and back to you asap. Keith looking forward to speaking to you in person soon.

Josh May
HDG Leadership
HyperDatagrid
[redacted]

From: Tim Sprinkle <tsprinkle@angelinacounty.net>
Sent: Thursday, July 30, 2026 11:09 AM
To: Josh May <josh.may@hyperdatagrid.com>
Cc: Keith Wright <kwright@angelinacounty.net>
Subject: Economic Development Form

Hello Josh,
I have included a link to our Economic Development Form below. The first step will be to get this back to us so we can get the processes started. I also have included our County Judge Mr. Keith Wright into this conversation. Please let me know if you have any questions. Thanks

taxapp.pdf

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Angelina County Economic Development

[redacted]

Application for Assistance

The following information is required for all projects requesting economic development assistance from Angelina County, Texas. Fill in all spaces on the application form. If the information requested is not applicable, enter "N/A" in the space. Incomplete applications will not be considered for assistance. After receipt of the application, Angelina County may require additional information to be submitted to indicate the financial abilities or other factors of the company.

Applicant/Business Name	Business Ownership	
HyperDatagrid LLC	LLC	
Mailing Address (Business Headquarters)		
801 Travis Street, Suite 2102, PMB 1595		
City	**State**	**Zip Code**
Houston	Texas	77002
Phone Number	**Fax Number**	
[redacted]		
Applicant's Representative	**Title**	
Clay Roberts	Director of Real Estate	
Mailing Address (if different from above)		
City	**State**	**Zip Code**
Phone Number	**Fax Number**	

I certify that the information submitted in this application, including attachments, is true, correct and complete. Omissions or submission of incorrect information will render this application invalid.

Signature of Applicant's Representative

August 25, 2026

Date

Project Information

Description of the Project	
Data Center Development	
NAICS Code[1]	**NAICS Code Description**
518210	Computing Infrastructure Providers, Data Processing, Web Hosting, and Related Services

Property Address	Legal Description (attach if necessary)
3461 Ben Dunn Road, Lufkin, Texas	

Value of Improvements for this project			
Building	**Equipment**	**Total**	**Est. Taxable**
$620,000,000	$620,000,000	$1,240,000,000	$1,240,000,000

Existing Targeted Facility or New Building? Existing / New X			
Existing Industry Expansion?	**New Industry?**	**Building currently up to code?**	**Environmental Issues Needing Addressed**
Yes	Yes X	Yes	Yes X
No X	No	No N/A	No

Construction Time Frame (month/year)	
Start: January 2027	Complete: February 2028
Construction Materials To Be Purchased ($)	**Percent purchased in Angelina County**
TBD/It is a strategic advantage to keep as much of the material and labor locally sourced	Exact monetary value/% is based on availability and competitive quality and price.
Equipment & Furniture To Be Purchased ($)	**Percent purchased in Angelina County**
Same as Above	Same as above
Construction Workers Payroll[2]	**Percent purchased in Angelina County**
Same as Above	Same as above
Annual Facility Purchases[4]	**Percent purchased in Angelina County**
Same as above	Same as above

Purchases of Raw Materials From Local Manufacturers or Suppliers[5]		
NAICS Code	**NAICS Code Description**	**Annual Purchases**
N/A		

Projected Annual Sales	Annual Sales in Angelina County[6]	Percent Subject to Sales Tax
None	None	N/A

Will this project Have a tourism impact on the community (create local hotel stays?) YES - construction phase
If yes, complete the Tourism Project Supplemental Information page (available from the HDC).

Utility Usage Information

Water Average Monthly Usage (1,000 gallons)	Solid Waste Size Dumpster Requested / Monthly Pick-Ups
N/A - no public water utility service	Standard commercial dumpster; weekly pickup
Waste Water Average Monthly Usage (1,000 gallons)	**Electrical Service Needed** Transformers Needed? (Yes / No) Size:
N/A - no public wastewater utility; sanitary waste via on-site septic. Other waste will be captured and properly disposed.	On-site substation; service coordinated with Oncor. Transformers: Yes | Size: TBD
Natural Gas Needs Pressure Needed / Volume Usage Per Month	**Rail** Weight Rail Needed / Average Monthly Volume
Currently, we do not have natural gas needs; however, it is possible that the end user will want us to pursue this as an additional power source.	N/A - No rail service required
Rail	**Other (Use Additional Sheet to Explain if Necessary)**
Car Storage Needs On-Site (Yes / No) # of Cars:	Yes - standard parking lot; # cars TBD

Employment Information

Number of Employees (FTE) Cur / New Cur/ New Cur/New		Annual Payroll	% Previously Unemployed
Yr. 1- Yr.3 Yr.5 TBD - anticipated 10-20 permanent FTEs (Josh / Greg)		Yr.1 Yr.3 Yr. 5 TBD - Josh / Greg	TBD
# of Hourly	**Ave. Wage/Hour**	**# of Salaried**	**Ave. Annual Salary**
Unskilled=		Admin.=	
Semi - Skilled=		Managerial =	
Skilled =		Sales =	
Other =		Other =	

Benefits Offered Health Plan	Cost to Employee/Mo	Family Coverage Available	Cost to Employee/Mo
Yes / No		Yes / No	
Retirement/401K	**Vacation (#/yr)**	**Sick Days (#/yr)**	**Paid Holidays (#/yr)**
Yes / No			
Profit Sharing	**Dental Insurance**	**Life Insurance**	**Disability Insurance**
Yes / No	Yes / No	Yes / No	Yes / No

Please briefly explain your benefits package. Some items to cover are: Are same benefits offered to all employees? If not please explain the difference between plans. Is there a probationary period before benefits are offered? Are there any planned or expected changes in benefits in the near future? Does your salary schedule and your benefit package meet the requirements set forth in the current version of the Angelina County Tax Abatement Guidelines?

We will provide this information once the full project design is finalized.

Notes

1. NAICS Code: North American Industry Classification System.
2. Construction Workers Payroll: Payroll should include all construction workers. You may need to require bids from subcontractors to be detailed to show payroll.
3. Percent Spent in Angelina County: Percent of construction workers' payroll that will be spent by the workers in Angelina County (food and other retail purchases).
4. Annual Facility Purchases: Annual purchases of operating items such as office supplies, cleaning supplies, etc. that are subject to sales tax.
5. Purchases of Raw Materials from Local Manufacturers: Purchases of raw materials used in the manufacturing process that are *not* subject to sales tax.
6. Annual Sales in Angelina County: Estimated sales Angelina County customers. If the company has no Angelina County customers, enter "none."
7. Capital Investment Needed: Cost of installing new water or sewer lines.

Economic Development Assistance Requested

Tax Abatement Requested	First Year of Abatement	Abatement Schedule Requested*
Yes / No X	N/A	N/A

Who is the owner of the taxable real property for which tax abatement is sought?**
N/A - Tax abatement not requested

Is the taxable real property located Angelina County reinvestment zone?
Yes / No N/A

Other incentives requested (Yes / No) What is being requested?
Yes - PILOT (Payment in Lieu of Taxes) program

Explanation/Justification
Our only request is that the PILOT payments be reduced during the first two years, the construction period, stepping up to the full amount thereafter. Otherwise, we are excited to partner with Angelina County.

* Abatement Schedule Requested: Please refer to the Angelina County tax incentive policy statement and use your best estimation of your project's score to determine the applicable tax incentive schedule.
**Owner of the Taxable Real Property: Chapter 312 of the Texas Tax Code authorizes a municipality to enter into a tax abatement agreement *only* with the owner of taxable real property located in a reinvestment zone.

Required Attachments

The following items must be provided to Angelina County prior to consideration of incentives: Please submit each item listed as a separate item.

1. ☐ **Plat/Map of Property, extending 500 feet beyond property in all directions. (County can assist if needed)**
2. ☐ **Detailed List of Improvements, Including Equipment**
3. ☐ **Business Plan**
4. ☐ **Current Financial Report**
5. ☐ **Audited Financials for Previous Three Years**
6. ☐ **Tax Certificate (Company's Tax I.D. #)**
7. ☐ **Letter Addressing and committing to Tax Abatement Minimum Standards.**

Application Submission

Submit the completed application by mail or in person to:

Angelina County Economic Development
Office of the County Judge
211 E. Shepherd Ave.
Lufkin, Texas 75901

This application for Economic Development Assistance must be filed with the office of the Angelina County Judge prior to filing any required Building Permit or Business License applications with the County. If you have questions about this application for Economic Development Assistance, please contact the office Angelina County Judge at (936) 634-5413.

Addendum A

Tourism Project Supplemental Information

Expected Overnight Stays in Angelina County (# of rooms)			
Pre-Construction	Construction	1-3 yrs. After opening	3-5 yrs. After opening
TBD	TBD - 12-18 month construction impact	Minimal / N/A	Minimal / N/A

Explanation/Justification

The project is expected to generate temporary hotel stays from construction personnel, contractors, engineers, vendors, and other project-related personnel during the approximately 12-18 month construction period.

Potential Ancillary/Complementary Hospitality Related Development (Include: hotels, motels, tourist attractions, recreation areas)

N/A - No ancillary hospitality development is planned as part of the project.

Keith Wright

From: Eric Magee <e.magee@allison-bass.com>
Sent: Tuesday, September 22, 2026 4:41 PM
To: Keith Wright
Cc: Tim Sprinkle; Julia McVey
Subject: Angelina County - HyperDatagrid, LLC

As discussed, please find the Zoom link for the meeting on Thursday, September 24th at 2:30 p.m.

Eric Magee is inviting you to a scheduled Zoom meeting.

Topic: Angelina County - HyperDatagrid, LLC
Time: Sep 24, 2026 02:30 PM Central Time (US and Canada)

Join Zoom Meeting
https://us02web.zoom.us/j/88090837327?pwd=Ez3lvE4k999JbwstmAHALuAZO1sQ1m.1

Join and take notes
https://us02web.zoom.us/j/88090837327?pwd=Ez3lvE4k999JbwstmAHALuAZO1sQ1m.1&mynotes=on

Meeting chat link
https://us02web.zoom.us/launch/jc/88090837327

Meeting ID: 880 9083 7327
Passcode: 843435

One tap mobile
[redacted],,88090837327#,,,,*843435# US (Houston)
[redacted],,88090837327#,,,,*843435# US (San Jose)

Join by SIP
. 88090837327@zoomcrc.com

Join instructions
https://us02web.zoom.us/meetings/88090837327/invitations?signature=olW-BdlSezElikXyGzlkxsJPuItdZMeumRMqOO7gDig

J. Eric Magee
Allison, Bass & Magee, L.L.P.
1301 Nueces St., Suite 201
Austin, Texas 78701

[redacted]

[redacted] Fax

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TAX ABATEMENT AGREEMENT
BETWEEN
ANGELINA COUNTY AND LONGLEAF GENERATING, LLC

This Tax Abatement Agreement ("Agreement") is made and entered into, by and between Angelina County, a political subdivision of the State of Texas ("County"), and Longleaf Generating, LLC, a Delaware limited liability company ("Owner/Grantee"), pursuant to the provisions of Chapter 312 of the Texas Tax Code.

RECITALS

WHEREAS, the County has established and adopted Tax Abatement Guidelines which govern tax abatement agreements made by the County in accordance with the provisions and requirements of Chapter 312 of the Texas Tax Code;

WHEREAS, the County has also passed a resolution electing to be eligible to participate in tax abatement agreements governed by Chapter 312 of the Texas Tax Code;

WHEREAS, on February 25, 2025, the Commissioners Court of Angelina County, Texas, acting in accordance with the provisions of Section 312.401 of the Texas Tax Code, designated 99.12 acres of land, located in northeastern part of Angelina County, Texas, as the Longleaf Reinvestment Zone, for commercial-industrial tax abatement purposes ("Reinvestment Zone");

WHEREAS, Owner/Grantee owns or will own the real property described below, along with the improvements and facilities located thereon, all of which is situated within the Reinvestment Zone;

WHEREAS, Owner/Grantee desires to construct a new, peaking, natural gas, power generating facility on the real property described below for the purpose of producing dispatchable electrical power for the State of Texas ("Project");

WHEREAS, Owner/Grantee, in connection with the construction of this natural gas power generating facility, expects to invest a minimum of $690,000,000.00 in improvements and equipment, which investment will be a benefit to the Reinvestment Zone and will significantly enhance the economic base of the county;

WHEREAS, Owner/Grantee has made application for a tax abatement agreement with the County and the Commissioners Court of Angelina County has determined that the terms of the agreement and the property subject thereto meet the county's tax abatement guidelines and criteria;

WHEREAS, the County, in accordance with the authority of Section 312.402 of the Texas Tax Code, has further determined to grant the application and to offer a tax abatement to Owner/Grantee to construct its natural gas, power generating facility on the real property described below;

WHEREAS, notice of the County's intent to enter into this Agreement has previously been provided to the presiding officers of each of the other taxing units levying taxes in the Reinvestment Zone, all as required by the Texas Tax Code; and

WHEREAS, this Agreement was also considered and adopted at a regularly scheduled meeting of the Commissioners Court, for which the County provided written notice at least 30 days before the scheduled time of the meeting, which notice was properly posted in accordance with Texas Tax Code § 312.207 and the Open Meetings Act, and at which meeting a quorum of the Commissioners Court was present;

NOW THEREFORE, in consideration of the foregoing and the covenants, agreements, representations, and warranties hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the County and Owner/Grantee agree as follows:

AGREEMENT

Section 1. Property Subject to Tax Abatement Agreement

a. The real property ("Real Property") subject to this Agreement is a tract or parcel of land containing 99.12 acres, along with the power generating facilities, structures, and other improvements to be constructed and situated thereon (the "Facility"), which is located in Reinvestment Zone and which is further described, by metes and bounds in the attached Exhibit "A", which is incorporated herein by reference.

b. The tangible personal property ("Personal Property") subject to this Agreement is the equipment and other tangible personal property located at the Facility (excluding inventory & supplies) and used by Owner/Grantee, its affiliates or contractors, for the operation of the Facility and the generation of electrical power.

Section 2. Owner/Grantee Representations

a. Owner/Grantee represents that it has complied with the required application procedures as adopted by the Angelina County Commissioners Court.

b. Owner/Grantee represents that the Real Property and Personal Property subject to this Agreement will be used and operated as a peaking, natural gas, power generating facility as described above and for the purposes set forth herein.

c. Owner/Grantee represents that, at all times, it will operate the natural gas power generating facility in accordance with prudent industry standards and applicable federal, state and local laws, codes, ordinances and regulations.

d. Owner/Grantee represents that it is authorized to do business and is in good standing in the State of Texas, and shall remain in good standing during the term of this Agreement. Further, Owner/Grantee has taken all necessary corporate action to authorize Owner/Grantee's execution and delivery of this Agreement and Owner/Grantee's performance of the obligations hereunder.

e. Owner/Grantee represents that there are no bankruptcy proceeding or other insolvency proceedings of any sort currently pending or contemplated against Owner/Grantee and that Owner/Grantee has not been informed of any potential involuntary bankruptcy or insolvency proceedings.

f. Owner/Grantee represents that there is no litigation or governmental proceeding pending or threatened against or affecting Owner/Grantee that may result in any material adverse change in Owner/Grantee's business, properties or operations. Further, no consent, approval or authorization of, or registration or declaration with, any governmental authority is required in connection with the execution of this Agreement or the transactions contemplated herein.

g. Owner/Grantee represents that it has acquired and maintains or that, prior to commencement of construction of the Facility under the terms hereof, it will acquire and maintain all necessary rights, licenses, permits and authority to carry on its business in Angelina County, Texas.

h. Owner/Grantee represents that it will fully and timely comply with all of the terms and conditions of this Agreement,

Section 3. Owner/Grantee Requirements

a. Owner/Grantee agrees to invest a minimum of Six Hundred Ninety Million Dollars ($690,000,000.00) in the Project that includes a maximum of Three Hundred Fifty Million Dollars ($350,000,000.00) in Real Property and Personal Property subject to this Agreement (to construct the natural gas power generating Facility) in accordance with the Benchmark schedule outlined in Section 5, with said investment and construction being commenced no later than April 1, 2027 and being completed no later than December 31, 2030.

b. Owner/Grantee agrees to, thereafter, operate the Facility for the purpose of producing dispatchable electrical power for use in the State of Texas.

c. Owner/Grantee agrees to continue operations at the Facility, without suspension or cessation, for the duration of the Abatement Term as defined in Section 4b below.

d. Owner/Grantee agrees to add a minimum of nine (9) full time primary jobs at the Facility by December 31, 2030 (in accordance with the Benchmarks Schedule outlined in Section 5 below) and to retain those jobs for the duration of the Abatement Term.

e. Owner/Grantee agrees to remain current in its payment of unabated, ad valorem taxes to all local taxing entities. However, nothing in this Agreement waives the Owner/Grantee's rights to protest valuation or other legal challenges to taxes assessed by all taxing jurisdictions;

f. Owner/Grantee agrees to furnish the Chief Appraiser of the Angelina County Appraisal District with such information as may be necessary for appraisal purposes;

g. Owner/Grantee agrees to provide access to the Real Property and Facility for inspection during regular business hours or at a mutually agreeable time to representatives of the County and/or the Angelina County Appraisal District to ensure that improvements and upgrades are made in accordance with the requirements and conditions of this Agreement. The County and/or Appraisal District shall give Owner/Grantee reasonable advance notice of the inspections conducted pursuant to this Agreement and they shall be conducted in accordance with standard safety precautions and so as not to interfere with or interrupt the operation of the Facility;

h. Owner/Grantee agrees to annually certify in writing its compliance with the terms of this Agreement as set forth in Section 7 below.

Section 4. <u>County Requirements</u>

a. Provided that Owner/Grantee complies with the terms of this Agreement, the County agrees to provide Owner/Grantee an abatement of the ad valorem taxes due the County on the additional value of the Real and Personal Property improvements, reported on the appraisal rolls of the Angelina County Appraisal District, for a period of ten years as listed below, resulting from Grantee's capital investment in the Property subsequent to this Agreement, as follows:

Year One	100%	Year Six	80%
Year Two	100%	Year Seven	60%
Year Three	100%	Year Eight	60%
Year Four	80%	Year Nine	40%
Year Five	80%	Year Ten	20%

b. The period of the abatement will be ten (10) years, commencing with the first tax year after commencement of commercial operations at the Facility (the "Commencement Date") and expiring after ten years (the "Abatement Term").

c. Tax abatements approved by County under this Agreement will be based on the appraisal rolls of the Angelina County Appraisal District, for each year of the Abatement Term.

Section 5. **Benchmarks**

Date	**Performance Benchmarks**
First Year of Abatement Term	Make a cumulative capital investment of a minimum of Six Hundred Ninety Million Dollars ($690,000,000.00) in the Project that includes a maximum of Three Hundred Fifty Million Dollars ($350,000,000.00) in Real Property and Personal Property (Commence & complete construction of the Facility). Add at least nine full time jobs at the Facility.
Second Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full-time jobs at the Facility.
Third Year of Abatement Term	Complete a full year of operations at the Facility; Retain at least nine full time jobs at the Facility.
Fourth Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full time jobs at the Facility.
Fifth Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full time jobs at the Facility.
Sixth Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full time jobs at the Facility.
Seventh Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full time jobs at the Facility.
Eighth Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full time jobs at the Facility.
Ninth Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full time jobs at the Facility.
Tenth Year of Abatement Term	Complete a full year of operations at the Facility. Retain at least nine full time jobs at the Facility.

Failure to meet the performance benchmarks above or failure to materially comply with any terms of this Agreement may result in the early termination of this Agreement as provided herein.

Section 6. Default and Recapture

a. Subject to the default provisions of Section 6(d) below, pertaining to retention of fulltime jobs, if Owner/Grantee refuses or fails to materially comply with any of the terms of this Agreement, or if any representation made by Owner/Grantee in the Economic Development Program Application or in this Agreement is false in any material respect at the time made, the County may declare Owner/Grantee in default. In the event of default, and after the expiration of the Cure Period below, the County

may terminate this Agreement and all abated taxes shall be recaptured as provided under the provisions of this Section.

b. In the event that the County determines Owner/Grantee to be in default of this Agreement, the County will notify Owner/Grantee in writing at the corporation's business headquarters address set forth in the Application for Economic Development Assistance. If the default is not cured within thirty (30) days, or as soon as practicable in the event default is of a nature that cure is not possible within thirty (30) days, from the date such notice is received (the "Cure Period"), this Agreement will be deemed terminated. A total bill for recaptured taxes, calculated in accordance with this Section, will be sent to the Owner/Grantee at the corporation's business headquarters address set forth in the Economic Development Program Application, and Owner/Grantee agrees to pay the total amount within thirty (30) days of receipt. Interest at the rate of twelve percent (12%) per annum on unpaid amounts will begin to accrue on all amounts that remain unpaid following sixty (60) days after receipt of the bill. If Owner/Grantee cures the default following notice by the County, Owner/Grantee shall not be liable to repay the recaptured taxes, and it shall be entitled to the benefits under this Agreement for the current and any future years in which it is not in default. Should the default be cured by Owner/Grantee within the thirty (30) day notice period, Owner/Grantee shall be responsible for so advising the County and obtaining a release from the notice of default from the County, failing in which, the Agreement shall be terminated.

c. If during the Abatement Term the Owner/Grantee permanently ceases operation in Angelina County, Texas, then the County shall be entitled to recapture ONE HUNDRED PERCENT (100%) of the taxes abated in prior years and the year in which such discontinuance occurs.

d. During the period commencing January 1, 2031 and continuing through the end of the Abatement Term, if in a given year the average number of full-time primary jobs (as certified to the County in accordance with Section 7) drop more than fifty percent (50%) below the minimum required number as set forth in Section 5, then the abatement percentage set forth in Section 4 shall be forfeited for that tax year. In the event Owner/Grantee fails to retain the minimum number of required jobs for a period of three (3) consecutive years, then County may declare Owner/Grantee in default and terminate the agreement, with no recapture of previously abated taxes.

e. Neither party shall be required under this Agreement or be liable or responsible for any loss or damage resulting from its failure to perform so long as performance is actually, materially, and reasonably, delayed or prevented by acts of God, fire, explosion, or other casualty or accident or natural disaster or other event beyond the reasonable control of the parties. The burden shall be upon Owner/Grantee to prove to the satisfaction of the County that the discontinuance, whether temporary or permanent, of the operation of the Facility was a result of a fire, explosion, or other casualty or accident or natural disaster or other event beyond the control of Owner/Grantee. In the event Owner/Grantee meets this burden and the County is

satisfied that the discontinuance of the operations of the Facility was the result of events beyond the control of Owner/Grantee, then Owner/Grantee shall have a period of one (1) year in which to resume operations of the Facility, or as soon as practicable within the one (1) year period. In the event that Owner/Grantee fails to resume such operation within one (1) year, then this Agreement shall terminate, with no recapture of previously abated taxes. The one (1) year time period, hereinabove mentioned, shall commence upon written notification from the County to Owner/Grantee.

f. In the event that Owner/Grantee allows ad valorem taxes on real property or business personal property taxes owed to the local taxing authorities to become delinquent and fails to timely and properly follow the legal procedures for their protest or contest, then in such event this Agreement shall terminate, and the County shall be entitled to recapture ONE HUNDRED PERCENT (100%) of the taxes abated in prior years.

g. In accordance with Chapter 2264, Texas Government Code, Owner/Grantee certifies that Owner/Grantee, or a branch, division, or department of Owner/Grantee does not and will not knowingly employ an undocumented worker. Owner/Grantee further certifies that in the event that Owner/Grantee, or a branch, division, or department of Owner/Grantee, is convicted of a violation under 8 U.S.C. Section 1324a(f), Owner/Grantee shall repay the taxes previously abated pursuant to this Agreement. Such a conviction shall be cause for this Agreement to terminate.

h. Except as is otherwise provided in this Section, in every case of termination set forth above: (1) the County shall determine whether default has occurred by Owner/Grantee in the terms and conditions of this Agreement, which determination shall not be unreasonably withheld or delayed; and (2) Owner/Grantee shall be responsible for repayment to the County any taxes abated pursuant to this Agreement. Repayment shall be made to the County as set forth in Section 6(b) above.

Section 7. Certification of Compliance by Owner/Grantee

a. On or before January 1st of each year that this Agreement is in effect, Owner/Grantee shall certify in writing to the County its compliance with all provisions of this Agreement. Such certification shall include any and all necessary documentation establishing that Owner/Grantee has met the annual performance benchmarks requirement for the previous year and that any and all taxes related to the Property have been paid in full as required by law. The certification shall be filed with the Angelina County Judge.

Section 8. Term

a. From its date of execution, this Agreement shall be effective for a period extending through the Abatement Term, as stated in Section 4(b) above, unless otherwise terminated in accordance with another section of this Agreement.

Section 9. Successors and Assigns

a. This Agreement shall be binding on and inure to the benefit of the parties, their respective successors and assigns. Owner/Grantee may assign all or part of its rights and obligations hereunder only upon prior written approval of the County, which approval shall not be unreasonably withheld or delayed.

b. Notwithstanding the foregoing, Owner/Grantee may, without obtaining the County's consent, mortgage, pledge, or otherwise encumber (a "Mortgage) its interest in this Agreement or the Project to a Lender for the purpose of financing the construction or operations of the Project or acquiring additional equipment following any initial phase of construction. Owner/Grantee's encumbering its interest in this Agreement may include an assignment of its rights and obligations under this Agreement for purposes of granting a security interest in this Agreement (a "Security Agreement") to one or more Lenders. In the event Owner/Grantee grants a Mortgage or a Security Agreement in this Agreement, it shall promptly provide written notice of such action to the County with such notice to include the name and notice information of the Lender. County shall provide a copy to such Lender of all notices (including default notices) delivered to Owner/Grantee at the same time that the notice is delivered to Owner/Grantee and Lender shall be afforded the rights to cure afforded to Owner/Grantee under this Agreement. Nothing in any Mortgage or Security Agreement shall be construed or interpreted to have the effect of changing any of the terms and conditions of this Agreement.

Section 10. Notices

a. Any notice and/or statement required and permitted to be delivered shall be deemed delivered by depositing same in the United States mail, certified with return receipt requested, postage prepaid, addressed to the appropriate party at the following addresses or at such addresses provided by the parties in writing hereafter:

Owner/Grantee:	Longleaf Generating, LLC Attn: Mike Alvarado, President 2001 ProEnergy Boulevard Sedalia, MO. 65301
County:	County Judge Angelina County, Texas P. O. Box 908 Lufkin, TX 75902
Copy to	County Attorney Angelina County, Texas P.O. Box 1845 Lufkin, Texas 75901

Section 11. Interpretation

a. Regardless of the actual drafter of this Agreement, this Agreement shall in the event of dispute over its meaning or application, be interpreted fairly and reasonably, and neither more strongly for or against either party.

Section 12. Applicable Law

a. This Agreement is made and shall be construed and interpreted under the laws of the State of Texas and exclusive venue for any cause of action, claim, dispute, or legal proceeding arising out of this Agreement shall lie in the state district courts of Angelina County, Texas.

Section 13. Indemnification

a. Owner/Grantee shall indemnify, defend and hold harmless the County, its elected officials, officers, employees and agents from and against any and all claims, losses, damages, causes of actions, suits, liabilities, judgments, liens and expenses (including without limitation, court costs, attorney fees, investigation costs, removal and remediation costs, and governmental oversight costs) of any nature, kind or description, arising out of, resulting from, or related to (in whole or in part) Owner/Grantee's performance of its obligations pursuant to this Agreement; provided, that the indemnity, defense and hold harmless shall not apply to that portion of responsibility or liability resulting from the fault or negligence of County or taxing units or their officers, agents or employees.

b. The County shall promptly notify Owner/Grantee of any indemnified losses or claims for indemnified losses in respect to which the County may be entitled to indemnification under this section. Such notice shall be given as soon as reasonably practicable after the County becomes aware of the loss or claim.

c. In the event any action or proceeding shall be brought against the County by reason of any matter for which the County is indemnified by Owner/Grantee hereunder, Owner/Grantee shall, upon notice from County or its authorized agent or representative, at Owner/Grantee's sole cost and expense, resist and defend the same with legal counsel selected by Owner/Grantee. Provided, however, Owner/Grantee shall not admit liability in such matter on behalf of the County. Owner/Grantee obligation to defend shall apply regardless of whether the County is concurrently negligent (except for County's sole negligence). Nothing herein shall be deemed to prevent the County at its election and at its own expense from cooperating with Owner/Grantee and participating in the defense of any litigation by its own counsel. If Owner/Grantee fails to retain defense counsel within seven (7) business days after receipt of County's written notice that the County is invoking its right to indemnification under this Agreement, the County shall have the right to retain defense

counsel on their own behalf and Owner/Grantee shall be liable for all usual and customary defense costs incurred by the County.

d. The amount owing to County will be the amount of the County's losses less the amount of any insurance proceeds received by the County following a reasonable effort by County to obtain such insurance proceeds.

Section 14. Attorney's Fees

a. The parties hereto agree that the prevailing party in any dispute between the parties arising out of this Agreement shall be entitled to recover its reasonable attorney's fees and costs.

Section 15. Severability

a. In the event that any provision of this Agreement is illegal, invalid, or unenforceable under present or future laws, then and in that event it is the intention of the parties hereto that the remainder of this Agreement shall not be affected thereby, and it is also the intention of the parties to this Agreement that in lieu of each clause or provision that is found to be illegal, invalid, or unenforceable, a provision be added to this Agreement which is legal, valid and enforceable and is as similar in terms as possible to the provision found to be illegal, invalid, or unenforceable.

Section 16. Entire Agreement

a. This Agreement contains the entire agreement between the County and Owner/Grantee with respect to the transactions contemplated herein. This Agreement may be amended, altered, or revoked only by written instrument signed by the County and Owner/Grantee.

EXECUTED the 27th day of May 2025.

ANGELINA COUNTY, TEXAS

Keith Wright
County Judge

ATTEST:

Amy Fincher
Amy Fincher
County Clerk
By: Leora Sowell
Deputy Clerk

EXECUTED the 26th day of ~~May~~ August 2025.

Longleaf Generating, LLC

Mike Alvarado
President

ACKNOWLEDGEMENT

THE STATE OF Texas §
COUNTY OF Harris §

BEFORE ME, the undersigned authority, a Notary Public in and for said County and State, on this day personally appeared Mike Alvarado, President of Longleaf Generating, LLC, a Delaware limited liability company, known to me to be the person and officer whose name is subscribed to the foregoing instrument and acknowledged to me he executed the same as a duly authorized officer of such corporation, and as the act and deed of such corporation, for the purposes and consideration therein expressed, and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE this 26th day of August, A.D., 2025..

Notary Public in and for the State of Texas

Peyton Irwin
(Typed/Printed Name of Notary)

My Commission Expires:

10-18-2028

PEYTON IRWIN
Notary Public, State of Texas
Comm. Expires 10-18-2028
Notary ID 136135672

EXHIBIT "A"

Real Property Description

Property Description is Located on the Following Page.

99.12 ACRES (AS SURVEYED)

BEING A 99.12 ACRE TRACT OF LAND LOCATED IN THE ARTHUR FULGHAM SURVEY, ABSTRACT NO. 1135, THE JAMES H SPARKS SURVEY, ABSTRACT NO. 552, AND THE VICENTE MICHELI SURVEY, ABSTRACT NO. 29, ANGELINA COUNTY, TEXAS, AND BEING A PORTION OF THAT CERTAIN CALLED 22.50 ACRE TRACT, DESCRIBED AS "TRACT THREE", AND THAT CERTAIN CALLED 114.270 ACRE TRACT, DESCRIBED AS "TRACT TWO", IN THE DEED TO GILLESPIE PARTNERS, LTD. IN INSTRUMENT NUMBER 2015-00330754, OF THE OFFICIAL RECORDS OF ANGELINA COUNTY, TEXAS (O.R.A.C.T.) AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS WITH ALL BEARINGS REFERENCE TO THE TEXAS COORDINATE SYSTEM, CENTRAL ZONE, NAD 83:

BEGINNING AT A 3/4 INCH IRON PIPE WITH CAP (ILLEGIBLE) FOUND FOR THE NORTHEAST CORNER OF SAID 22.50 ACRE TRACT, SAME BEING THE SOUTHEAST CORNER OF THAT CERTAIN CALLED 38.37 ACRE TRACT, DESCRIBED IN THE DEED TO PAUL MULLIN, SR. AND WIFE, PATRICIA LEE MULLIN IN VOLUME 2131, PAGE 27, O.R.A.C.T., AND LYING WITHIN THE APPARENT RIGHT-OF-WAY OF LIGHTFOOT ROAD (NO RECORD INFORMATION FOUND) SAID POINT OF BEGINNING HAVING GRID COORDINATES OF N:10,522,156.44, E:4,067,762.39;

THENCE, S 03° 38' 26" E, ALONG THE EAST LINE OF SAID 22.50 ACRE TRACT AND WITHIN THE MARGINS OF SAID LIGHTFOOT ROAD, A DISTANCE OF 485.46 FEET TO A POINT FOR THE SOUTHEAST CORNER OF THE HEREIN DESCRIBED TRACT, FROM WITH A 3/4 INCH IRON PIPE FOUND WITH CAP (ILLEGIBLE) FOR THE SOUTHEAST CORNER OF SAID 22.50 ACRE TRACT, SAME BEING THE NORTHEAST CORNER OF THAT CERTAIN CALLED 200' X 376' TRACT DESCRIBED IN THE DEED TO DONNA G. LIGHTFOOT IN INSTRUMENT NUMBER 2012-00288238, O.R.A.C.T., BEARS S 03° 38' 26" E, 50.00 FEET;

THENCE, S 87° 34' 54" W, OVER AND ACROSS SAID 22.50 ACRE TRACT AND SAID 114.270 ACRE TRACT ("TRACT TWO"), AT A DISTANCE OF 15.38 FEET PASSING A 5/8 INCH IRON ROD WITH CAP STAMPED "GIE 10194602" SET FOR REFERENCE, AND CONTINUING OVER AND ACROSS SAID 22.50 ACRE TRACT AND SAID ("TRACT TWO") A DISTANCE OF 1,839.97 FEET TO A 5/8 INCH IRON ROD WITH CAP STAMPED "GIE 10194602" SET FOR AN INTERIOR CORNER OF THE HEREIN DESCRIBED TRACT,

THENCE, S 03° 32' 47" E, CONTINUING OVER AND ACROSS SAID 114.270 ACRE TRACT, A DISTANCE OF 50.01 FEET TO A 5/8 INCH IRON ROD WITH CAP STAMPED "GIE 10194602" SET FOR A SOUTHERLY CORNER OF THE HEREIN DESCRIBED TRACT, FROM WHICH A 3/4 INCH IRON PIPE WITH CAP FOUND FOR THE SOUTHWEST CORNER OF SAID 22.50 ACRE TRACT, SAME BEING THE NORTHWEST CORNER OF THAT CERTAIN CALLED 22-1/2 ACRE TRACT, DESCRIBED IN THE DEED TO STEVEN EARL LIGHTFOOT IN INSTRUMENT NUMBER 2012-00288239, O.R.A.C.T. SAID POINT LYING IN AN EASTERLY LINE OF SAID 114.270 ACRE TRACT BEARS N 87° 34' 54" E, 50.00 FEET;

THENCE, S 87° 34' 54" W, CONTINUING OVER AND ACROSS SAID 114.270 ACRE TRACT, A DISTANCE OF 1,122.65 FEET TO A 5/8 INCH IRON ROD WITH CAP STAMPED "GIE 10194602" SET FOR THE SOUTHWEST CORNER OF THE HEREIN DESCRIBED TRACT, SAID POINT LYING IN A SOUTHWESTERLY LINE OF SAID 114.270 ACRE TRACT ("TRACT TWO"), SAME BEING THE NORTHEAST LINE OF THAT CERTAIN CALLED 114.270 ACRE TRACT, DESCRIBED AS "TRACT ONE", IN THE DEED TO GILLESPIE PARTNERS, LTD. IN INSTRUMENT NUMBER 2015-00330754, (O.R.A.C.T.), FROM WHICH A 3/4" IRON PIPE FOUND FOR THE

COMMON SOUTH CORNER OF SAID "TRACT ONE" AND "TRACT TWO" BEARS SOUTH 27° 24' 19" EAST, 2,887.48 FEET;

THENCE, N 27° 24' 19" W, ALONG THE SOUTHWEST LINE OF SAID "TRACT TWO", SAME BEING THE NORTHEAST LINE OF SAID "TRACT ONE", A DISTANCE OF 505.46 FEET TO A 1/2 INCH IRON ROD FOUND FOR A WESTERLY CORNER OF SAID "TRACT TWO", SAME BEING THE NORTH CORNER OF SAID "TRACT ONE" AND AN INTERIOR CORNER OF THAT CERTAIN CALLED 567.06 ACRE TRACT, DESCRIBED AS "PARCEL 3" IN A DEED TO TEXAS TIMBERJACK INC. IN VOLUME 2035, PAGE 35, O.P.R.A.C.T.;

THENCE, ALONG THE INTERIOR WESTERLY LINES OF SAID 114.270 ACRE TRACT ("TRACT TWO"), SAME BEING THE INTERIOR EASTERLY LINES OF SAID 567.06 ACRE TRACT, THE FOLLOWING FOUR (4) COURSES:

1. N 31° 09' 07" E, A DISTANCE OF 121.64 FEET TO A 1/2 INCH IRON ROD FOUND FOR CORNER;

2. N 14° 34' 58" W, A DISTANCE OF 1,472.55 FEET TO A POINT FOR CORNER;

3. S 80° 36' 49" E, PASSING AT 8.74 FEET A 1/2 INCH IRON ROD WITH CAP STAMPED "RPLS 5412 EAC" FOUND FOR REFERENCE, AND CONTINUING FOR A TOTAL DISTANCE OF 583.88 FEET TO A 1/2 INCH IRON ROD FOUND FOR CORNER

4. N 04° 06' 26" W, A DISTANCE OF 737.64 FEET TO A 1/2 INCH IRON ROD FOUND FOR THE NORTHWEST CORNER OF SAID 114.270 ACRE TRACT ("TRACT TWO"), SAME BEING AN INTERIOR EASTERLY CORNER OF SAID 567.07 ACRE TRACT AND THE WEST CORNER OF AN APPROXIMATE 0.016 ACRE POSSIBLE DEED GAP BETWEEN THE NORTH LINE OF SAID 114.270 ACRE TRACT, SAME BEING THE INTERIOR SOUTHERLY LINES OF SAID 567.07 ACRE TRACT;

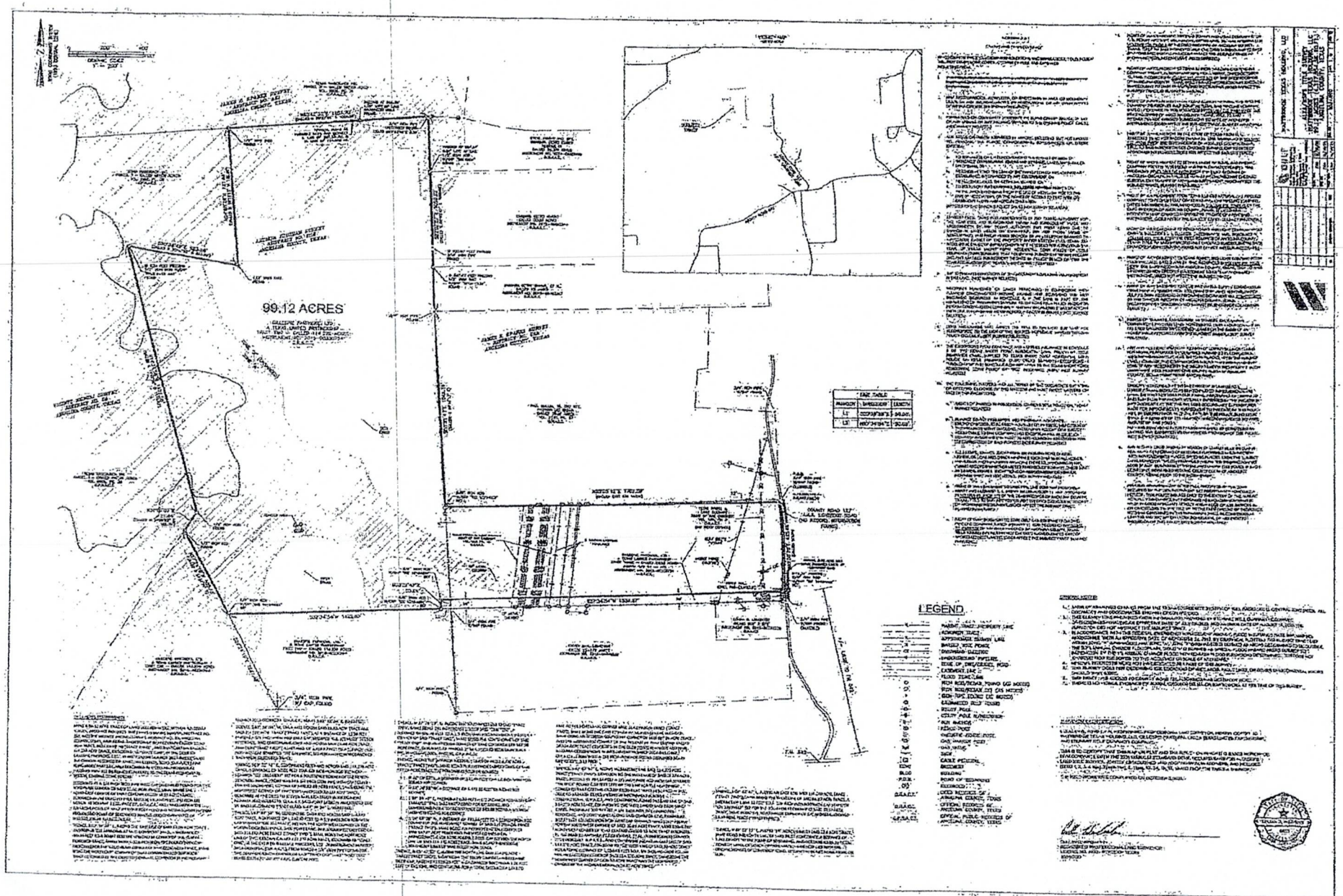
THENCE, N 85° 42' 32" E, ALONG THE NORTH LINE SAID 114.270 ACRE TRACT ("TRACT TWO"), SAME BEING THE SOUTH LINE OF SAID 0.016 ACRE DEED GAP, PASSING AT 688.30 FEET A GALVANIZED BOLT FOUND 1.29 FEET LEFT OF THE LINE, AND CONTINUNG FOR A TOTAL DISTANCE OF 1,053.70 FEET TO THE NORTHEAST CORNER SAID 114.270 ACRE TRACT ("TRACT TWO"), SAME BEING THE EAST CORNER OF SAID 0.016 ACRE DEED GAP, SAME BEING AN INTERIOR SOUTHERLY CORNER OF SAID 567.06 ACRE TRACT, AND THE NORTHWEST CORNER OF THE RESIDUE OF THAT CERTAIN CALLED 26.374 ACRE TRACT DESCRIBED IN THE DEED TO STEVE KNIGHT AND WIFE, BARBARA GETRO KNIGHT IN INSTURMENT NUMBER 2014-00322469, O.R.A.C.T., FROM WITH A 3/4 INCH IRON PIPE FOUND DISTURBED BEARS S81°43'46"E, 0.29 FEET;

THENCE, S 02° 07' 57" E, ALONG AN EASTERLY LINE SAID 114.270 ACRE TRACT ("TRACT TWO"), COMMON TO THE WEST LINE OF SAID 26.374 ACRE TRACT, PASSING AT 297.34 FEET A 1/2 INCH IRON ROD WITH CAP STAMPED "TRI TECH" FOUND 0.24 FEET LEFT OF THE LINE FOR THE NORTHWEST CORNER OF THAT CERTAIN CALLED 20.00 ACRE TRACT DESCRIBED IN THE DEED TO BARBARA GETRO KNIGHT IN INSTRUMENT NUMBER 2012-00292544, O.R.A.C.T, AND CONTINUING ALONG THE EAST LINE OF SAID 114.270 ACRE TRACT, COMMON TO THE WEST LINE OF SAID 20.00 ACRE TRACT, PASSING AT 703.97 FEET A 3/4 INCH IRON PIPE FOUND FOR REFERENCE, AND CONTINUING ALONG SAID COMMON LINE, PASSING AT 807.47 FEET 1/2 INCH IRON ROD WITH CAP STAMPED "RPLS 1733" FOUND FOR THE SOUTHWEST CORNER OF SAID 20.00 ACRE TRACT, SAME BEING THE NORTHWEST CORNER OF THAT CERTAIN CALLED 10 ACRE TRACT DESCRIBED IN THE DEED TO BARBARA GETRO KNIGHT, ET AL. IN INSTRUMENT NUMBER 2018-00362387, O.R.A.C.T., AND CONTINUING ALONG AN EAST LINE OF SAID 114.270 ACRE TRACT, COMMON TO THE WEST LINE OF SAID 10 ACRE TRACT FOR A TOTAL DISTANCE OF

1,050.69 FEET TO A 3/4 INCH IRON PIPE FOUND FOR AN EASTERLY CORNER OF SAID 114.270 ACRE TRACT, SAME BEING THE SOUTHWEST CORNER OF SAID 10 ACRE TRACT AND THE NORTHWEST CORNER OF THE AFOREMENTIONED 38.37 ACRE TRACT;

THENCE, S 03° 32' 47" E, ALONG AN EAST LINE SAID 114.270 ACRE TRACT ("TRACT TWO"), SAME BEING THE WEST LINE OF SAID 38.37 ACRE TRACT, A DISTANCE OF 1,048.16 FEET TO A 5/8 INCH IRON ROD WITH CAP STAMPED "GIE 10194602" SET FOR THE SOUTHWEST CORNER OF SAID 38.37 ACRE TRACT, SAME BEING THE NORTHWEST CORNER OF THE AFOREMENTIONED 22.50 ACRE TRACT ("TRACT THREE");

THENCE, N 88° 08' 12" E, ALONG THE NORTH LINE OF SAID 22.5 ACRE TRACT, SAME BEING THE SOUTH LINE OF SAID 38.37 ACRE TRACT, A DISTANCE OF 1,789.59 FEET TO THE POINT OF BEGINNING, AND CONTAINING 99.12 TOTAL ACRES OF LAND, OF WHICH APPROXIMATELY 0.06 ACRE LIES WITH THE OCCUPIED LIMITS OF LIGHTFOOT ROAD, LEAVING 99.06 NET ACRES MORE OR LESS.


99.12 ACRES
LEGEND

ANGELINA COUNTY COMMISSIONERS COURT

RESOLUTION 010-26

SUPPORTING THE LIMITED REGULATORY AUTHORITY OF COUNTIES IN RURAL AREAS ON EMERGING TECHNOLOGIES INCLUDING DATA CENTERS AND BATTERY STORAGE FACILITIES

WHEREAS, Texas is a premier destination for innovation and our counties have long welcomed the tax base and economic growth that accompany digital and energy infrastructure; and

WHEREAS, The pace of data center and battery storage facility construction has exponentially increased across the United States and within the State of Texas; and

WHEREAS, local concerns have emerged across Texas regarding the potential adverse impacts of large-scale data center developments on surrounding communities, the environment, public health, consumer utility costs, land use compatibility, and strain on local infrastructure and resources; and

WHEREAS, the scale of emerging technologies has shifted from modest facilities to "gigawatt-scale" campuses, creating a regulatory gap at the county level that has become a significant liability for residents; and

WHEREAS, counties have no significant land use authority; and

WHEREAS, the 24/7 operation of large-scale cooling fans and backup generators creates low-frequency noise pollution, while large-scale battery installations present unique public safety challenges, including specialized emergency response requirements; impacting the health and property values of neighboring families; and

WHEREAS, a single data center facility can consume millions of gallons of water per day for evaporative cooling, and the potential for chemical runoff (in the event of a fire) from battery sites threatens local aquifers and utility resources in counties already managing depleted groundwater levels; and

WHEREAS, the frequent use of non-disclosure agreements (NDAs) prevents public transparency, leading to community distrust and unnecessary litigation when residents learn of massive projects only after permits are issued;

NOW, THEREFORE, BE IT RESOLVED that the Angelina County Commissioners Court requests that the Texas Legislature grant counties limited and specific authority to regulate emerging technologies including data center and battery energy storage developments including but not limited to the following:

1. Reasonable Buffer Zones & Noise Mitigation: Authority to mandate minimum setback requirements and sound-attenuation standards for facilities including battery enclosures and cooling units adjacent to residential or agricultural zones to protect the "quiet enjoyment" of Texas homes. Reasonable noise limitations and limits at the property line. The use of low-noise chiller systems and sound attenuated generator enclosures.
2. Light pollution standards based on the International Dark Sky standards to limit glare and spillover.
3. Water Availability & Resource Protection: Authority to require a certified Water Impact Statement and Environmental Safety Plan for high-load industrial users, granting counties the standing to negotiate water usage limits, alternative cooling technologies, or containment strategies for hazardous materials if a project threatens local water security, soil health, or agriculture sustainability.
4. Mandatory Public Hearing Process: Requirement for a public hearing process for any data center or battery storage facility exceeding a specific megawatt (MW) or megawatt-hour (MWh) threshold to ensure community engagement, coordination with local first responders, and a predictable path for development.
5. Construction techniques and materials to reduce thermal footprint and heat emissions.
6. Professionally designed landscape plan; tree canopy and vegetative screening.
7. Cooling systems, generators, and electrical equipment to be fully enclosed and/or visually screened.

NOW THEREFORE BE IT RESOLVED that the Angelina County Commissioners Court supports limited regulatory authority of counties in rural area on emerging technologies including data centers and battery storage facilities in order to reduce potential impacts on surrounding communities and neighborhoods, the environment, public health, land use compatibility and strain on local infrastructure and resources.

Adopted and approved this 14th day of July, 2026.

Keith N. Wright
County Judge

Tim Sprinkle, Comm. PCT 1

Kermit Kennedy, Comm. PCT 2

Tom Berry, Comm. PCT 3

Kenneth Jeffrey, Comm. PCT 4

COMMISSIONERS COURT ★ ANGELINA COUNTY TEXAS ★

ATTEST:
Amy Fincher, County Clerk

STATE OF TEXAS
COUNTY OF ANGELINA
I hereby certify that this instrument was FILED on the date and at the time stamped hereon by me and was duly RECORDED in the ____ RECORDS of Angelina County, Texas
Amy Fincher
COUNTY CLERK
ANGELINA COUNTY TEXAS

FILED
AT 1 O'CLOCK A M
JUL 14 2026
AMY FINCHER
County Clerk, County Court at Law
Angelina County, Texas
By ____

Keith Wright

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Wednesday, October 15, 2025 7:28 AM
To: Keith Wright
Subject: RE: Lufkin, TX Site

Thursday works for me. I'll send for 1:30 ET, if that doesn't work just propose a new time and I'll see if I can swing it.

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p [redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405

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-----Original Message-----
From: Keith Wright <kwright@angelinacounty.net>
Sent: Tuesday, October 14, 2025 1:45 PM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: RE: Lufkin, TX Site

What about Thursday. Just send me a meeting notice.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

-----Original Message-----
From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Thursday, October 9, 2025 4:34 PM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Sounds good. Let me know if there is a preferred time to talk.

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
[redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405

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-----Original Message-----
From: Keith Wright <kwright@angelinacounty.net>
Sent: Thursday, October 9, 2025 9:53 AM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: Re: Lufkin, TX Site

Will be back next Tuesday.

Get Outlook for iOS<https://aka.ms/o0ukef> _____
From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Tuesday, October 7, 2025 11:06:12 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Keith,
Good morning. Wanted to check in and see if you were feeling better and back in the office.

Thanks

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p [redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405

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-----Original Message-----
From: Keith Wright <kwright@angelinacounty.net>
Sent: Tuesday, September 30, 2025 6:46 PM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: Re: Lufkin, TX Site

Sorry Kevin. Been getting over Covid.

Keith Wright

Get Outlook for iOS<https://aka.ms/o0ukef> _____
From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Tuesday, September 30, 2025 12:01:43 PM
To: Keith Wright <kwright@angelinacounty.net>; Sanderson, Brad <sanderson.b@tandh.com>; Greg Mikulecky <greg.mikulecky@ampz.energy>; Jeremy Manzella <jeremy.manzella@ampz.energy>; Pittman, Ann <pittman.a@tandh.com>; Sara Karouni <skarouni@wga-llc.com>; Tyler Ray <tray@wga-llc.com>
Cc: Scott Steiding <ssteiding@bennett-pless.com>; Nicole Zechman <nzechman@bennett-pless.com>
Subject: Lufkin, TX Site
When: Tuesday, September 30, 2025 1:00 PM-2:00 PM.

Where: Microsoft Teams Meeting

Microsoft Teams Need help?<https://aka.ms/JoinTeamsMeeting?omkt=en-US>

Join the meeting now<https://teams.microsoft.com/l/meetup-join/19%3ameeting_NzFlMGQxMDUtMDRlMy00NTk0LWI2YmYtYTZhMGU4MmQ5YWYx%40thread.v2/0?context=%7b%22Tid%22%3a%221a894e1f-cadd-4395-b18d-ab194ebab418%22%2c%22Oid%22%3a%221981b87d-56d5-42d6-ac08-f61c6f15d329%22%7d>

Meeting ID: 297 128 736 984 8

Passcode: 3wy69JQ6

Dial in by phone

[redacted],691000798#<tel:[redacted],691000798> United States, +Chicago

Find a local number<https://dialin.teams.microsoft.com/2a532f54-0856-47e6-a26e-b4c2d261f733?id=691000798>

Phone conference ID: 691 000 798#

For organizers: Meeting options<https://teams.microsoft.com/meetingOptions/?organizerId=1981b87d-56d5-42d6-ac08-f61c6f15d329&tenantId=1a894e1f-cadd-4395-b18d-ab194ebab418&threadId=19_meeting_NzFlMGQxMDUtMDRlMy00NTk0LWI2YmYtYTZhMGU4MmQ5YWYx@thread.v2&messageId=0&language=en-US> | Reset dial-in PIN<https://dialin.teams.microsoft.com/usp/pstnconferencing>

[https://www.thomasandhutton.com/wp-content/uploads/2018/06/TH_LOGO__2.png]

Org help<https://www.thomasandhutton.com/microsoft-teams-tutorial/>

This email was scanned by Bitdefender

Keith Wright

From: Keith Wright
Sent: Tuesday, November 4, 2025 10:10 AM
To: 'Mark Hicks'
Subject: RE: Friday Meeting with Estes Family Office and AmpZ

I'll be there.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Mark Hicks <mark@Hicks-Co.com>
Sent: Monday, November 3, 2025 3:53 PM
To: Raine Cotton <raine@epg[redacted]; Steve Bradley <steve@epgchampion.com>; Stefan Prelevic [redacted].com>; [redacted]; Keith Wright <kwright@angelinacounty.net>; [redacted]; jake.ellis@senate.texas.gov; Kartye, Melinda <Melinda.Kartye@mail.house.gov>; msimon@angelina.edu; Hockenberry, James <jhockenberry@lufkinisd.org>; lbrown@cityoflufkin.com
Subject: Friday Meeting with Estes Family Office and AmpZ

All,

See below details for Friday's meeting. We appreciate you taking the time to be there. Please respond to this email confirming your attendance.

Here is the list of attendees and the agenda for our upcoming meeting:

Attendees:
* Raine Cotton – Estes Family Office
* Eric Estes – Estes Family Office
* Steve Bradley – Estes Family Office
* Stefan Prelevic – Estes Family Office
* Dave Rodgers - AmpZ
* Scott Hanna - AmpZ
* Ryan Smith - AmpZ
* Mark Hicks – Lufkin Mayor
*Keith Wright – Angelina County Judge
*Trent Ashby – State Representative
*Robert Nichols – State Senator
*Pete Sessions – US Congressman
*Dr. Michael Simon – Angelina College President
*Dr. James Hockenberry – Lufkin ISD Superintendent
*Larissa Brown – Lufkin EDC Director

Agenda:
* Introductions

* Project presentation review
* Discussion of utility/Oncor-related issues
* Discussion of community benefits (as part of the project presentation)
* Brainstorming where and how we can best utilize assistance

Time: 2pm Friday November 7th

Location:
Former Temple-Inland Corporate Office – Boardroom
303 Temple Blvd.
Diboll, Texas

Thanks,
Mark

Hicks Company

Mark Hicks
President

[redacted] | [redacted]
mark@hicks-co.com | www.hicks-co.com

This email was scanned by Bitdefender

Keith Wright

From: Kartye, Melinda <Melinda.Kartye@mail.house.gov>
Sent: Thursday, November 13, 2025 2:20 PM
To: Raine Cotton; [redacted]; kgee@cityoflufkin.com; mark@hicks-co.com; jhockenberry@lufkinisd.org; [redacted]; eagle@petesessions.com; rshankle@cityoflufkin.com; msimon@angelina.edu; [redacted]; Keith Wright; Mercer, Vicki
Cc: Stefan Prelevic; Steve Bradley; Dave Rogers; Ryan Smith
Subject: RE: Thank You & Data Center Project Letter of Support

Raine,

It was a pleasure meeting all of you. Please add the Congressman's District Director, Vicki Mercer to this list; I have copied her here. She is the main POC for our office on this project, but of course you can also contact me anytime for assistance.

Sincerely,

Melinda Kartye
Deep East Texas Outreach Coordinator
Office of Congressman Pete Sessions (TX-17)
Lufkin Field Office
300 E. Shepherd Ave. Suite 210 Lufkin, Texas 75901
[redacted]
Nacogdoches Field Office
3034 Raguet Street Nacogdoches, Texas 75965
[redacted]
Cell[redacted]

PETE SESSIONS
U.S. CONGRESSMAN FOR TEXAS 17TH

From: Raine Cotton <raine@epgindustry.com>
Sent: [redacted]ber 12, 2025 2:34 PM
To: [redacted]; kgee@[redacted]; mark@hicks-co.com; jhockenberry@lufkinisd.org; Kartye, Melinda <Melinda.Kartye@mail.house.gov>; [redacted]; eagle@petesessions.com; rshankle@cityoflufkin.com; msimon@angelina.edu; [redacted], kwright@angelinacounty.net
Cc: Stefan Prelevic <stefan@epgchampion.com>; Steve Bradley <steve@epgchampion.com>; Dave Rogers <dave@amp.energy>; Ryan Smith <ryan.smith@ampz.energy>
Subject: Thank You & Data Center Project Letter of Support

Dear Community Leaders,

I hope everyone had a great Veterans Day!

Thank you all for taking the time to meet and discuss the data center project. The enthusiasm and support expressed for the economic impact and benefits to the community were truly encouraging. It's clear that this project represents a meaningful opportunity for the community.

As discussed, I've attached the Letter of Support for your signature. This is a standard form letter that we'll be consolidating with all participating leaders' signatures to demonstrate community backing.

Please sign and return the letter at your convenience, and I'll compile all of the signatures into a single version for submission.

Thank you again for your partnership and support. We look forward to continuing our work together as this project progresses.

Best regards,

Raine Cotton

Cell [redacted]

This email was scanned by Bitdefender

[Date]

To Whom It May Concern:

The undersigned elected officials express our full support for EPG Champion's planned redevelopment of the former Abitibi Paper Mill site in Lufkin, Texas, into a state-of-the-art data center and on-site power generation facility.

This site, located within a federally designated Opportunity Zone, represents one of the most economically distressed areas of our region. For nearly two decades, it has stood as a reminder of the jobs and economic vitality our community lost when the paper mill closed. The proposed project represents a once-in-a-generation opportunity to restore that economic strength—bringing high-quality jobs, substantial tax revenue, and new infrastructure investment to the Angelina County area.

We believe this project aligns with the long-term vision our community has shared for the site: revitalization, responsible industrial use, and sustainable economic growth. EPG Champion's investment will not only create direct employment opportunities during construction and operation but will also support local suppliers, contractors, and small businesses across the region.

We strongly encourage all stakeholders to give this project the attention and priority it deserves. Its success will mark a major step forward for East Texas and serve as a model for how legacy industrial sites can be reimagined for modern, technology-driven industries.

Sincerely,

Signature: _____

Name: _____

Title/Office: _____

Keith Wright

From: Keith Wright
Sent: Tuesday, November 18, 2025 2:00 PM
To: 'Raine Cotton'
Subject: RE: Thank You & Data Center Project Letter of Support
Attachments: DataCenterLetterOfSupport.pdf

See attached.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Raine Cotton <raine@epgindustry.com>
Sent: Wednesday, November 12, 2025 2:34 PM
To: [redacted]; kgee@cityoflufkin.com; mark@hicks-co.com; jhockenberry@lufkinisd.org; Melinda.Kartye@mail.house.gov; [redacted]; eagle@petesessions.com; rshankle@cityoflufkin.com; msimon@angelina.edu; [redacted], Keith Wright <kwright@angelinacounty.net>
Cc: Stefan Prelevic <stefan@epgchampion.com>; Steve Bradley <steve@epgchampion.com>; Dave Rogers <dave@amp.energy>; Ryan Smith <ryan.smith@ampz.energy>
Subject: Thank You & Data Center Project Letter of Support

Dear Community Leaders,

I hope everyone had a great Veterans Day!

Thank you all for taking the time to meet and discuss the data center project. The enthusiasm and support expressed for the economic impact and benefits to the community were truly encouraging. It's clear that this project represents a meaningful opportunity for the community.

As discussed, I've attached the Letter of Support for your signature. This is a standard form letter that we'll be consolidating with all participating leaders' signatures to demonstrate community backing.

Please sign and return the letter at your convenience, and I'll compile all of the signatures into a single version for submission.

Thank you again for your partnership and support. We look forward to continuing our work together as this project progresses.

Best regards,

Raine Cotton

Cell [redacted]

This email was scanned by Bitdefender

November 18, 2025

To Whom It May Concern:

The undersigned elected officials express our full support for EPG Champion's planned redevelopment of the former Abitibi Paper Mill site in Lufkin, Texas, into a state-of-the-art data center and on-site power generation facility.

This site, located within a federally designated Opportunity Zone, represents one of the most economically distressed areas of our region. For nearly two decades, it has stood as a reminder of the jobs and economic vitality our community lost when the paper mill closed. The proposed project represents a once-in-a-generation opportunity to restore that economic strength—bringing high-quality jobs, substantial tax revenue, and new infrastructure investment to the Angelina County area.

We believe this project aligns with the long-term vision our community has shared for the site: revitalization, responsible industrial use, and sustainable economic growth. EPG Champion's investment will not only create direct employment opportunities during construction and operation but will also support local suppliers, contractors, and small businesses across the region.

We strongly encourage all stakeholders to give this project the attention and priority it deserves. Its success will mark a major step forward for East Texas and serve as a model for how legacy industrial sites can be reimagined for modern, technology-driven industries.

Sincerely,

Signature: _____

Name: Keith N. Wright, P.E.

Title/Office: Angelina County Judge

Keith Wright

From: Raine Cotton <raine@epgindustry.com>
Sent: Tuesday, November 18, 2025 2:05 PM
To: Keith Wright
Subject: Re: Thank You & Data Center Project Letter of Support

Thank you for your continued support! Looking forward to making this a big success!

On Tue, Nov 18, 2025 at 3:00 PM Keith Wright <kwright@angelinacounty.net> wrote:

See attached.

Keith N. Wright, P.E.

County Judge

Angelina County

[redacted]

From: Raine Cotton <raine@epgindustry.com>
Sent: Wednesday, November 12, 2025 2:34 PM
To: [redacted]; kgee@cityoflufkin.com; mark@hicks-co.com; jhockenberry@lufkinisd.org; Melinda.Kartye@mail.house.gov; rnichols55@aol.com; eagle@petesessions.com; rshankle@cityoflufkin.com; msimon@angelina.edu; [redacted]; Keith Wright <kwright@angelinacounty.net>
Cc: Stefan Prelevic <stefan@epgchampion.com>; Steve Bradley <steve@epgchampion.com>; Dave Rogers <dave@amp.energy>; Ryan Smith <ryan.smith@ampz.energy>
Subject: Thank You & Data Center Project Letter of Support

Dear Community Leaders,

I hope everyone had a great Veterans Day!

Thank you all for taking the time to meet and discuss the data center project. The enthusiasm and support expressed for the economic impact and benefits to the community were truly encouraging. It's clear that this project represents a meaningful opportunity for the community.

As discussed, I've attached the Letter of Support for your signature. This is a standard form letter that we'll be consolidating with all participating leaders' signatures to demonstrate community backing.

Please sign and return the letter at your convenience, and I'll compile all of the signatures into a single version for submission.

Thank you again for your partnership and support. We look forward to continuing our work together as this project progresses.

Best regards,

Raine Cotton

Cell [redacted]

This email was scanned by Bitdefender

Keith Wright

From: Keith Wright
Sent: Monday, December 15, 2025 9:04 AM
To: Kenneth Jeffrey
Subject: RE: Amp Z Data Center Project

They have the crypo mining going on. They a third party marketing the land for the data center.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Kenneth Jeffrey <kjeffrey@angelinacounty.net>
Sent: Friday, December 12, 2025 1:50 PM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Amp Z Data Center Project

Has anyone really vetted this company? I don't think they have a center in operation yet. They have some in development and exploring others. Just wondering out loud.

Kenneth Jeffrey
Angelina County Commissioner Pct. #4
Cell [redacted]

From: Keith Wright <kwright@angelinacounty.net>
Sent: Friday, December 12, 2025 10:46 AM
To: Tim Sprinkle <tsprinkle@angelinacounty.net>; Kermit Kennedy <kkennedy@angelinacounty.net>; Tom Berry <tberry@angelinacounty.net>; Kenneth Jeffrey <kjeffrey@angelinacounty.net>
Subject: FW: Amp Z Data Center Project

FYI

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: William Manning-Marshall <william.marshall@ampz.energy>
Sent: Friday, December 12, 2025 8:29 AM

To: Keith Wright <kwright@angelinacounty.net>; Mike Fry <mfry@keatax.com>; Garrett Peters <gpeters@keatax.com>
Cc: Stefan Prelevic <stefan@texastimberjack.com>; Greg Mikulecky <Greg.Mikulecky@ampz.energy>; Russell Shriver <Russell.Shriver@ampz.energy>; Eric Estes <[redacted]com>; raine <raine@epgindustry.com>; Steve Bradley <steve@ttjequipment.com>; Erik Weis <erik.weis@ampz.energy>
Subject: Amp Z Data Center Project

Judge Wright -

Thank you again for taking the time yesterday to discuss our Lufkin data center development. We appreciate the direction, and we look forward to formalizing an incentive structure that is beneficial for all.

As mentioned on the call, I wanted to formally introduce Mike Fry and Garrett Peters with KE Andrews. They will be supporting Amp Z in developing a proposed tax incentive agreement that aligns with the framework we discussed.

We welcome the opportunity to set up a call with you and the KE Andrews team to ensure we are aligned on the approach and to give them a chance to ask any additional technical questions as they refine the structure. Please let us know if that would be helpful, and what timing might work on your end.

Thank you,

William Manning-Marshall
Director, Site Development
Amp Z
[redacted]
william.marshall@ampz.energy

This email was scanned by Bitdefender

Keith Wright

From: Keith Wright
Sent: Wednesday, January 7, 2026 11:00 AM
To: 'William Manning-Marshall'
Subject: RE: Amp Z Data Center Project

Go ahead and call. I am available.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: William Manning-Marshall <william.marshall@ampz.energy>
Sent: Wednesday, January 7, 2026 10:52 AM
To: Keith Wright <kwright@angelinacounty.net>
Cc: Greg Mikulecky <Greg.Mikulecky@ampz.energy>; Stefan Prelevic <stefan@texastimberjack.com>
Subject: Amp Z Data Center Project

Judge Wright -

Good afternoon. I spoke with Sally in your office just now and she recommended that I send you an email. I was calling in relation to the county incentive application that we are preparing to submit. We had a question regarding some of the documents that the application is requesting to be included.

Please let me know if there is a good time to give you a call back.

Thank you,

William Manning-Marshall
Director, Site Development
Amp Z
[redacted]
william.marshall@ampz.energy

This email was scanned by Bitdefender

Keith Wright

From: William Manning-Marshall <william.marshall@ampz.energy>
Sent: Friday, January 9, 2026 4:24 PM
To: Keith Wright
Cc: Greg Mikulecky; Mike Fry
Subject: Amp Z - Data Center Development

Judge Wright -

Good afternoon. We're wrapping up the County tax abatement application and had a few final questions we'd like to run by you before submitting. We'll be onsite this Tuesday, January 13, and wanted to see if you might have time to meet briefly in person. We'd be happy to come and meet you at your office if you are available.

If that's not convenient, a quick call would also be appreciated.

Thank you,

William Manning-Marshall
Director, Site Development
Amp Z
[redacted]
william.marshall@ampz.energy

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Keith Wright

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Tuesday, March 3, 2026 9:11 AM
To: Keith Wright
Subject: RE: Lufkin, TX Site

Thanks for the quick response. I know the AMPZ team told me you all were having discussions on the abatements. I let them know so that they are aware. Once we get location of the access and site plan nailed down we'll reach out to discuss further.

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p 912-721-4143 m [redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
vCard | Website | LinkedIn | Facebook | Instagram | YouTube

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From: Keith Wright <kwright@angelinacounty.net>
Sent: Tuesday, March 3, 2026 9:53 AM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: RE: Lufkin, TX Site

Yes, we are agreeable. It would be part of the tax abatement discussion. There would need to be a road use agreement.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Tuesday, March 3, 2026 8:48 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Good morning Keith,
Wanted to follow up on the request below for accessing off Twin Oaks Road. Let me know if this curb cut would be part of the County's jurisdiction and if so, who we would need to get in touch with to start that discussion.

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
[redacted]

e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
vCard | Website | LinkedIn | Facebook | Instagram | YouTube

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From: Forbes, Kevin
Sent: Wednesday, February 11, 2026 5:28 PM
To: 'Keith Wright' <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Keith,
Good afternoon. We are considering an access point off of Twin Oaks Rd. at the Lufkin site, and wanted to confirm if this is in your jurisdiction? If so, what's the process/timing for a curb cut?

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p 912-721-4143 m [redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
vCard | Website | LinkedIn | Facebook | Instagram | YouTube

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From: Keith Wright <kwright@angelinacounty.net>
Sent: Thursday, October 16, 2025 10:55 AM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: RE: Lufkin, TX Site

Nevermind Got it.

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Thursday, October 16, 2025 8:46 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

My apologies, I set this for 9:30 my time. Sending an update for 10 am your time/11 am my time.

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p 912-721-4143 m [redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
vCard | Website | LinkedIn | Facebook | Instagram | YouTube

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accessing, or disclosure of this message is prohibited. If you have received this message in error, please immediately notify Thomas & Hutton and purge the message received. Do not forward this message without permission.

From: Keith Wright <kwright@angelinacounty.net>
Sent: Wednesday, October 15, 2025 3:20 PM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: RE: Lufkin, TX Site

Should be available after 9:30 a.m.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Wednesday, October 15, 2025 2:18 PM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Got it. What's your availability in the morning? I had a couple meetings but they just got pushed so I'm around all morning now.

Thanks

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p [redacted] m [redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
vCard | Website | LinkedIn | Facebook | Instagram | YouTube

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From: Keith Wright <kwright@angelinacounty.net>
Sent: Wednesday, October 15, 2025 3:13 PM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: RE: Lufkin, TX Site

I have a lunch date and it will be pushing it to make it back by one.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Wednesday, October 15, 2025 2:12 PM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

I have a standing 3-4pm ET meeting, could we do 1-2 your time?

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p 912-721-4143 m [redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
vCard | Website | LinkedIn | Facebook | Instagram | YouTube

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-----Original Appointment-----
From: Keith Wright <kwright@angelinacounty.net>
Sent: Wednesday, October 15, 2025 11:38 AM
To: Forbes, Kevin
Subject: New Time Proposed: Lufkin, TX Site
When: Thursday, October 16, 2025 1:30 PM-2:00 PM (UTC-05:00) Eastern Time (US & Canada).
Where: Microsoft Teams Meeting

This email was scanned by Bitdefender

KEANDREWS
VALUATION•TAX•SOLUTIONS

March 9, 2026

Office of the County Judge
Angelina County
211 E. Shepherd Ave.
Lufkin, Texas 75901

Re: Property Tax Abatement Application - AMP Z Champion Data Center Holdings, LLC

Judge and Commissioners:

On behalf of AMP Z Inc. and AMP Z Champion Data Center Holdings, LLC (the "Applicant"), please accept the enclosed Application for Economic Development Assistance and supporting exhibits requesting a property tax abatement for a master-planned data center campus in northern Angelina County.

Project overview

- Located near Lufkin, this phased, master-planned data center campus spans over 1,000 acres, with the initial phase focused on approximately 150 acres.
- Capital investment: Over $1 billion in initial capital investment.
- Schedule: Construction starts April 2026; substantial completion by May 2030.

Abatement request

- Requesting a property tax abatement beginning with tax year 2027.
- Requested terms are shown on the enclosed Exhibit A.

We appreciate your consideration and look forward to partnering with Angelina County on this transformative investment. Please contact us with any questions.

Respectfully submitted,

Mike Fry
Director, KE Andrews

cc: William Manning-Marshall,
Director, Site Development – Amp Z Inc.

RECEIVED
MAR 16 2026
COUNTY JUDGE

2424 Ridge Rd.
Rockwall, TX 75087

[redacted]

www.keatax.com

KEANDREWS
VALUATION•TAX•SOLUTIONS

Exhibit A

AMP Z Champion Data Center Holdings, LLC respectfully requests a ten-year tax abatement agreement, with an abatement percentage starting at 100% in year 1 (period 0), ending at 10% in year 10 (period 9), as shown below.

Period	Tax Year	Due Date	Percent Good	Projected Value	Angelina County Tax Before Abatement	Abatement Percentage	Angelina County Tax After Abatement
0	2027	1/31/2028	25.00%	$262,500,000	$1,157,373	100%	$0
1	2028	1/31/2029	92.50%	$971,250,000	$4,282,281	90%	$428,228
2	2029	1/31/2030	85.00%	$892,500,000	$3,935,069	80%	$787,014
3	2030	1/31/2031	77.50%	$813,750,000	$3,587,857	70%	$1,076,357
4	2031	1/31/2032	70.00%	$735,000,000	$3,240,645	60%	$1,296,258
5	2032	1/31/2033	62.50%	$656,250,000	$2,893,433	50%	$1,446,717
6	2033	1/31/2034	55.00%	$577,500,000	$2,546,221	40%	$1,527,733
7	2034	1/31/2035	47.50%	$498,750,000	$2,199,009	30%	$1,539,306
8	2035	1/31/2036	40.00%	$420,000,000	$1,851,797	20%	$1,481,438
9	2036	1/31/2037	32.50%	$341,250,000	$1,504,585	10%	$1,354,127
10	2037	1/31/2038	25.00%	$262,500,000	$1,157,373		$1,157,373
11	2038	1/31/2039	20.00%	$210,000,000	$925,899		$925,899
12	2039	1/31/2040	20.00%	$210,000,000	$925,899		$925,899
13	2040	1/31/2041	20.00%	$210,000,000	$925,899		$925,899
14	2041	1/31/2042	20.00%	$210,000,000	$925,899		$925,899
15	2042	1/31/2043	20.00%	$210,000,000	$925,899		$925,899
	Totals			$7,481,250,000	$32,985,138		$16,724,044

2424 Ridge Rd.
Rockwall, TX 75087
[redacted]
www.keatax.com

Angelina County Economic Development

Office of the County Judge
211 E. Shepherd Ave.
Lufkin, Texas 75901

Application for Assistance

The following information is required for all projects requesting economic development assistance from Angelina County, Texas. Fill in all spaces on the application form. If the information requested is not applicable, enter "N/A" in the space. Incomplete applications will not be considered for assistance. After receipt of the application, Angelina County may require additional information to be submitted to indicate the financial abilities or other factors of the company.

Applicant/Business Name	Business Ownership	
AMP Z CHAMPION DATA CENTER HOLDINGS LLC	AMP Z INC	
Mailing Address (Business Headquarters)		
1850 Platte St. Unit 300		
City	**State**	**Zip Code**
Denver	CO	80202
Phone Number	**Fax Number**	
Applicant's Representative	**Title**	
Mike Fry	Director, KE Andrews	
Mailing Address (if different from above)		
2424 Ridge Rd		
City	**State**	**Zip Code**
Rockwall	TX	75087
Phone Number	**Fax Number**	
469-298-1304		

I certify that the information submitted in this application, including attachments, is true, correct and complete. Omissions or submission of incorrect information will render this application invalid.

Mike Fry

Signature of Applicant's Representative

03/09/2026

Date

Project Information

Description of the Project			
Located near Lufkin, this phased, master-planned data center campus spans over 1,000 acres, with the initial phase focused on approximately 150 acres.			
NAICS Code[1]	NAICS Code Description		
518210	518210 - Computing Infrastructure Providers, Data Processing, Web Hosting, and Related Services		
Property Address		Legal Description (attach if necessary)	
Highway 103		N/A	
Value of Improvements for this project			
Building	Equipment	Total	Est. Taxable
$1,000,000,000	$50,000,000	$1,050,000	$1,050,000,000
Existing Targeted Facility or New Building? Existing / (New)			
Existing Industry Expansion?	New Industry?	Building currently up to code?	Environmental Issues Needing Addressed
Yes	(Yes)	Yes	Yes
(No)	No	(No)	(No)
Construction Time Frame (month/year)			
Start: April 2026		Complete: May 2030	
Construction Materials To Be Purchased ($)		Percent purchased in Angelina County	
TBD		TBD	
Equipment & Furniture To Be Purchased ($)		Percent purchased in Angelina County	
TBD		TBD	
Construction Workers Payroll[2]		Percent purchased in Angelina County	
TBD		TBD	
Annual Facility Purchases[4]		Percent purchased in Angelina County	
TBD		TBD	
Purchases of Raw Materials From Local Manufacturers or Suppliers[5]			
NAICS Code	NAICS Code Description	Annual Purchases	
TBD			
Projected Annual Sales	Annual Sales in Angelina County[6]	Percent Subject to Sales Tax	
TBD	TBD	TBD	
Will this project Have a tourism impact on the community (create local hotel stays?)			
If yes, complete the Tourism Project Supplemental Information page (available from the HDC).			

Utility Usage Information

Water Average Monthly Usage (1,000 gallons)	Solid Waste Size Dumpster Requested / Monthly Pick-Ups
TBD	TBD
Waste Water Average Monthly Usage (1,000 gallons)	**Electrical Service Needed** Transformers Needed? (Yes / No) Size:
TBD	TBD
Natural Gas Needs Pressure Needed / Volume Usage Per Month	**Rail** Weight Rail Needed / Average Monthly Volume
TBD	TBD
Rail	Other (Use Additional Sheet to Explain if Necessary)
Car Storage Needs On-Site (Yes / No) # of Cars:	

Employment Information

Number of Employees (FTE) Cur / New Cur/ New Cur/New		Annual Payroll	% Previously Unemployed
Yr. 1- 25 Yr.3 25 Yr.5 25		Yr.1 Yr.3 Yr. 5	
# of Hourly	Ave. Wage/Hour	# of Salaried	Ave. Annual Salary
Unskilled=	Market Rate	Admin.=	Market Rate
Semi - Skilled=	Market Rate	Managerial =	Market Rate
Skilled =	Market Rate	Sales =	Market Rate
Other =	Market Rate	Other =	Market Rate
Benefits Offered			
Health Plan	Cost to Employee/Mo	Family Coverage Available	Cost to Employee/Mo
Yes / No	TBD	Yes / No	
Retirement/401K	Vacation (#/yr)	Sick Days (#/yr)	Paid Holidays (#/yr)
Yes / No	TBD		
Profit Sharing	Dental Insurance	Life Insurance	Disability Insurance
Yes / No	TBD Yes / No	Yes / No	Yes / No

Please briefly explain your benefits package. Some items to cover are: Are same benefits offered to all employees? If not please explain the difference between plans. Is there a probationary period before benefits are offered? Are there any planned or expected changes in benefits in the near future? Does your salary schedule and your benefit package meet the requirements set forth in the current version of the Angelina County Tax Abatement Guidelines?

Notes

1. **NAICS Code:** North American Industry Classification System.
2. **Construction Workers Payroll:** Payroll should include all construction workers. You may need to require bids from subcontractors to be detailed to show payroll.
3. **Percent Spent in Angelina County:** Percent of construction workers' payroll that will be spent by the workers in Angelina County (food and other retail purchases).
4. **Annual Facility Purchases:** Annual purchases of operating items such as office supplies, cleaning supplies, etc. that are subject to sales tax.
5. **Purchases of Raw Materials from Local Manufacturers:** Purchases of raw materials used in the manufacturing process that are *not* subject to sales tax.
6. **Annual Sales in Angelina County:** Estimated sales Angelina County customers. If the company has no Angelina County customers, enter "none."
7. **Capital Investment Needed:** Cost of installing new water or sewer lines.

Economic Development Assistance Requested

Tax Abatement Requested	First Year of Abatement	Abatement Schedule Requested*
(Yes) / No	2027	

Who is the owner of the taxable real property for which tax abatement is sought?**
VERDANT INDUSTRIES LLC
Is the taxable real property located Angelina County reinvestment zone?
Yes / (No)
Other incentives requested (Yes / No) What is being requested?
INCENTIVE AGREEMENT WITH CITY POTENTIALLY.
Explanation/Justification
THE PROJECT REQUESTS A TIERED ABATEMENT STRUCTURE SHOWN BELOW: YEAR 1 100% YEAR 2 90% YEAR 3 80% YEAR 4 70% YEAR 5 60% YEAR 6 50% YEAR 7 40% YEAR 8 30% YEAR 9 20% YEAR 10 10%

* **Abatement Schedule Requested:** Please refer to the Angelina County tax incentive policy statement and use your best estimation of your project's score to determine the applicable tax incentive schedule.
**Owner of the Taxable Real Property: Chapter 312 of the Texas Tax Code authorizes a municipality to enter into a tax abatement agreement *only* with the owner of taxable real property located in a reinvestment zone.

Required Attachments

The following items must be provided to Angelina County prior to consideration of incentives: Please submit each item listed as a separate item.

1. **Plat/Map of Property, extending 500 feet beyond property in all directions. (County can assist if needed)**
2. **Detailed List of Improvements, Including Equipment**
3. **Business Plan**
4. **Current Financial Report**
5. **Audited Financials for Previous Three Years**
6. **Tax Certificate (Company's Tax I.D. #)**
7. **Letter Addressing and committing to Tax Abatement Minimum Standards.**

Application Submission

Submit the completed application by mail or in person to:

Angelina County Economic Development
Office of the County Judge
102 West Frank St.
Lufkin, Texas 75901

This application for Economic Development Assistance must be filed with the office of the Angelina County Judge prior to filing any required Building Permit or Business License applications with the County. If you have questions about this application for Economic Development Assistance, please contact the office Angelina County Judge at [redacted].

Addendum A

Tourism Project Supplemental Information

Expected Overnight Stays in Angelina County (# of rooms)			
Pre-Construction	Construction	1-3 yrs. After opening	3-5 yrs. After opening
0	500	10	10

Explanation/Justification

This schedule above summarizes the anticipated demand for local hotel accommodations generated by the datacenter project, reflecting a temporary spike in overnight stays during the construction phase due to out-of-area contractors, followed by minimal ongoing demand after opening as datacenter operations require limited on-site staffing (compared to the construction).

Potential Ancillary/Complementary Hospitality Related Development
(Include: hotels, motels, tourist attractions, recreation areas)

N/A

KEANDREWS
VALUATION•TAX•SOLUTIONS

REQUIRED ATTACHMENTS

EXHIBIT "A" – Plat/Map of Property, extending 500 feet beyond property in all directions. (County can assist if needed)

EXHIBIT "B" – Detailed List of Improvements, Including Equipment

EXHIBIT "C" – Business Plan

EXHIBIT "D" – Current Financial Report

EXHIBIT "E" – Audited Financials for Previous Three Years

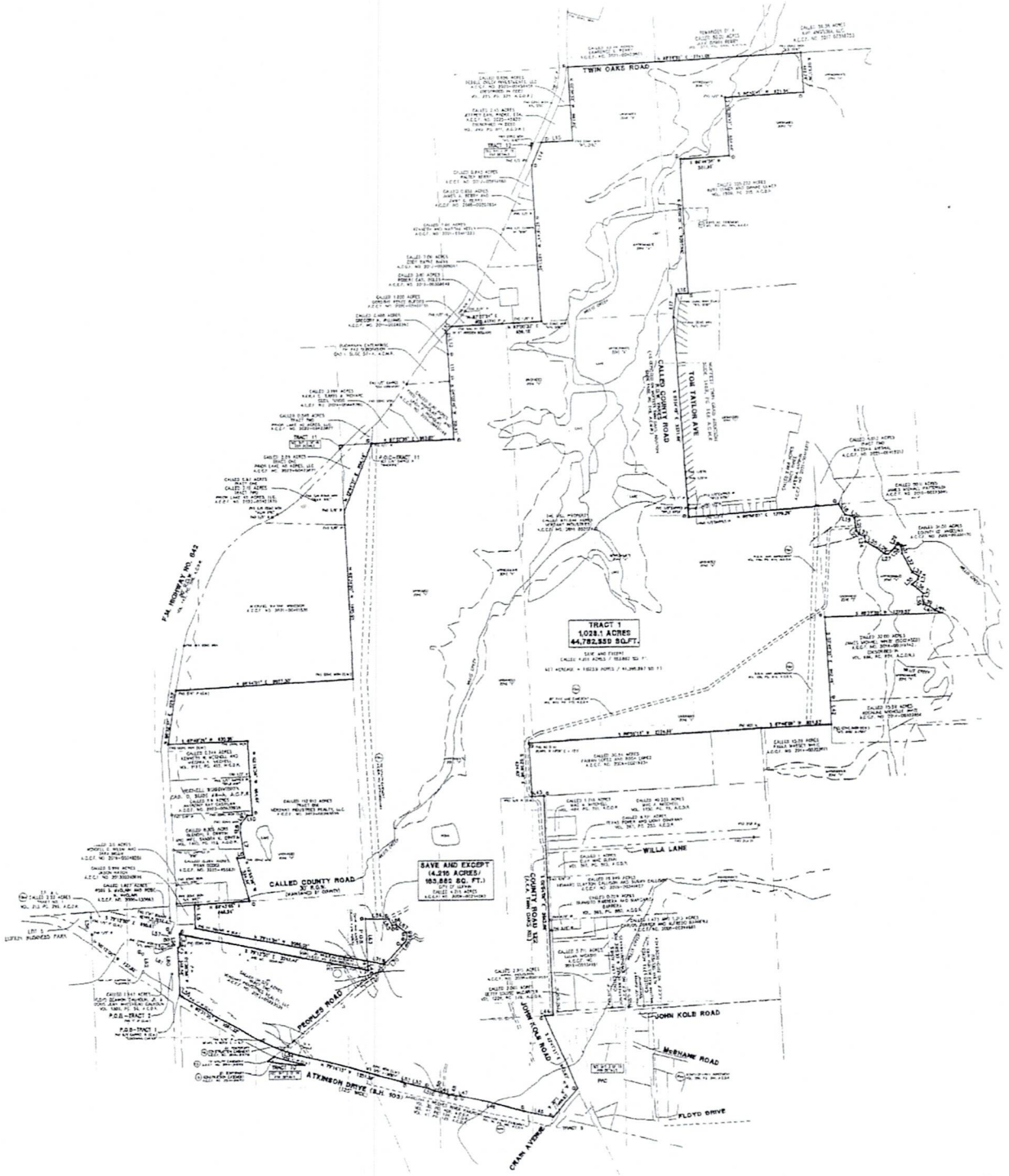
EXHIBIT "F" – Tax Certificate (Company's Tax I.D. #)

EXHIBIT "G" – Letter Addressing and committing to Tax Abatement Minimum Standards.

2424 Ridge Road
Rockwall, TX 75087
469.298.1594
www.keatax.com

EXHIBIT A

Plat/Map of Property



2424 Ridge Road
Rockwall, TX 75087

469.298.1594

www.keatax.com

EXHIBIT B

Detailed List of Improvements, Including Equipment

AMP Z, Inc.'s real and personal property improvements for the proposed Project would include:

- Cooling systems for temperature and humidity control
- Security: access controls, surveillance, fencing, gates, signage
- Data center buildings: 100,000–1,000,000 sq. ft. facility plus office/support spaces
- Site infrastructure: water, sewer, stormwater management, fiber, power, substation, electrical facilities
- Additional improvements: roads, paving, generators, fire water tanks, essential operations infrastructure
- Site work: ground improvements, underground utilities, earthwork, clearing/grubbing
- Core & shell: foundations, structural/exterior skin, misc. metals, mechanical, plumbing, electrical, interior construction
- Powered shell + MEP: equipment yard, mechanical systems, fire protection, electrical systems, controls, MEP equipment, office space
- IT Infrastructure

EXHIBIT C

Business Plan

ampz

Business Plan

Introduction

AMP Z Champion Data Center Holdings, LLC ("the Project") is a proposed data center facility located in northern Angelina County, TX, near the City of Lufkfin.

The potential Project is looking at building on 1,000+ acres of property, in a phased development approach, which if signed and executed, would result in over $1 billion in capital investment in the initial phase across the following Data Center components:

- IT Infrastructure
- Cooling Systems
- Security
- Data Center Buildings + Office/Support
- Site Infrastructure
- Core & Shell
- Roads, paving, generators, etc.
- MEP equipment

Timeline

AMP Z Champion Data Center Holdings, LLC has cleared most pre-design contingencies which can facilitate its immediate permitting and subsequent construction upon approval of the requested Chapter 312 Economic Development Agreement.

- Construction Start – Q1 2026
- Construction Complete – 2030
- Operations Commence – 2027 / 2028

Benefits and differentiating factors

In addition to the incremental tax revenue generated over the life of the data center, there are several benefits to the community that are unique to the Project:

- **Job Creation** – Significant employment opportunities during construction and permanent technical, security, and maintenance roles once operational.
- **Infrastructure Improvements** – Upgrades to power, fiber, and road systems that benefit local businesses and residents.
- **Economic Development** – Increased demand for local services and potential attraction of additional technology companies to the region.
- **Community Investment** – Potential funding for STEM programs, educational partnerships, and local initiatives through corporate social responsibility efforts.

EXHIBIT D

Current Financial Report

2424 Ridge Road
Rockwall, TX 75087
[redacted]
www.keatax.com

EXHIBIT E

Audited Financials for Previous Three Years

2424 Ridge Road
Rockwall, TX 75087
469.298.1594
www.keatax.com

amp z

Angelina County
Office of The County Judge

211 E. Shepard Ave.
Lufkin, TX 75901
United States of America

Subject: Property Tax Abatement for AMP Z Champion Data Center Holdings, LLC

February 16, 2026

The application guidelines request submission of three (3) years of audited financial statements. At this time, audited financial statements are not being submitted with this application.

The Applicant confirms that it has the financial capability and resources necessary to develop, construct, and operate the proposed project as described. The Applicant remains available to provide additional information or documentation if requested during the County's review process and looks forward to continuing to work collaboratively with Angelina County.

Best,

Russell Shriver
Chief Development Officer – Amp Z, Inc

EXHIBIT F

Tax Certificate (Company's Tax I.D. #)

EXHIBIT G

Letter Addressing and committing to Tax Abatement Minimum Standards

2424 Ridge Road
Rockwall, TX 75087
469.298.1594
www.keatax.com

ampz

Angelina County
Office of The County Judge

211 E. Shepard Ave.
Lufkin, TX 75901
United States of America

Subject: Property Tax Abatement for AMP Z Champion Data Center Holdings, LLC

February 17, 2026

AMP Z Inc. (AMP Z) and its subsidiary AMP Z Champion Data Center Holdings, LLC are pleased to have the opportunity to collaborate with the Office of Economic Development of Angelina County by pursuing the development of a Data Center Facility at Highway 103, Lufkin, TX. As part of this development process, our team has requested a property tax abatement from Angelina County. After reviewing the Tax Abatement Guidelines for Angelina County, Texas (issued on March 11th, 2025), AMP Z and AMP Z Champion Data Center Holdings, LLC would like to express our commitment to meeting those guidelines.

We look forward to our growing partnership with Angelina County and please do not hesitate to reach out to our team with any questions on our abatement application.

Best,

Russell Shriver
Chief Development Officer – Amp Z, Inc.

Keith Wright

From: Mike Fry <mfry@keatax.com>
Sent: Thursday, March 26, 2026 11:04 AM
To: Keith Wright; Garrett Peters
Cc: James M. Yakovsky; Mark Hicks; Connor Danahy
Subject: RE: Tax Abatement Application

Judge Wright,

Thank you for your detailed feedback. I am on it and will get these items addressed promptly.

To confirm, we will work to incorporate the following into the application:

1. Correct the Total Value — we will fix the figure currently listed as $1,050,000.
2. Construction Material Estimate — including a concrete purchase estimate specific to Angelina County suppliers, at minimum.
3. Equipment Estimate — with acknowledgment that local procurement will represent a small percentage of total.
4. Construction Payroll Estimate — including an estimated percentage of hires from Angelina County.
5. Local Raw Material Purchases — estimated concrete purchases from local suppliers identified separately.
6. Water & Sewer Needs — conservative estimates as requested.
7. Employment Information — average annual salary by position.
8. Employee Benefits — we will confirm and state that AmpZ provides health coverage and other company benefits consistent with their current offerings.

Regarding the townhall meeting — I will relay your request to AmpZ that they hold a community-facing townhall prior to any vote at Commissioners Court.

On the legal agreement, we understand the abatement conditions will be negotiated and will be comparable to other data center agreements in Texas. We are prepared to work through those terms when the time comes.

I will keep you updated as we make progress. Please don't hesitate to reach out with any additional questions.

Best regards,
Mike

Mike Fry
KE Andrews
[redacted]
mfry@keatax.com
www.keatax.com

From: Keith Wright <kwright@angelinacounty.net>
Sent: Thursday, March 26, 2026 10:03 AM
To: Mike Fry <mfry@keatax.com>
Cc: James M. Yakovsky <jyakovsky@angelinacounty.net>; Mark Hicks <mark@Hicks-Co.com>
Subject: Tax Abatement Application

You don't often get email from kwright@angelinacounty.net. Learn why this is important

Mike,

As you are aware, the data center project is fairly contentious. Thus, I am going to need a clearer picture of the proposed project so that we can ensure citizens we are doing our due diligence. Based on that, I need the following information added to the application:

- Correction, please correct the Total value listed it in the application, it shows $1,050,000
- Need complete estimate of construction material value. It is my opinion that at a minimum concrete will be purchased in Angelina County and should be easy to estimate, provide the estimate on the application.
- Need to estimate equipment, of which, a very small percentage will probably be purchased here.
- Estimate payroll of construction and estimate percentage to be hired in Angelina County.
- Estimate purchase of raw material, concrete, from local suppliers.
- Estimate water and sewer needs. Be conservative.
- Estimate employment information. Average annual salary for positions is acceptable.
- I am assuming that the company will provide health coverage and other company benefits based on what they are currently providing.
  State it.

The legal agreement of the abatement will have other conditions as part of the agreement. These will be comparable to other agreements developed with data centers in Texas. We can negotiate these requests at that time.

I would also request that AmpZ provide a townhall style meeting for the community prior to any vote at the Commissioners Court.

Thank,

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

Keith Wright

From: Keith Wright
Sent: Thursday, March 26, 2026 11:28 AM
To: 'Mike Fry'
Subject: FW: AmpZ Abatement Application

See below.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: James M. Yakovsky <jyakovsky@angelinacounty.net>
Sent: Thursday, March 26, 2026 10:28 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: AmpZ Abatement Application

I've started looking at the necessary reinvestment zone documents, as well as their application. We're going to need a survey map, as well as a legal description of the property to include with the notice and order.

The notice will need to be published in the paper at least 7 days before the public hearing, on the county website under the events and economic development sections, and physically posted at the courthouse door. I guess timing will be affected depending on the townhall style meeting you've suggested.

Also, for purposes of wording the Angelina County Reinvestment Zone "Three", do we know what it will be called?

James M. Yakovsky
County Attorney
Angelina County Courthouse
Post Office Box 1845
Lufkin, Texas 75902-1845
Phone [redacted]

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From: Keith Wright <kwright@angelinacounty.net>
Sent: Thursday, March 26, 2026 10:10 AM
To: James M. Yakovsky <jyakovsky@angelinacounty.net>
Subject: AmpZ Abatement Application

FYI

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

This email was scanned by Bitdefender

Keith Wright

From: Larissa Brown <lbrown@cityoflufkin.com>
Sent: Friday, March 27, 2026 4:31 PM
To: Keith Wright; Kevin Gee; Mark Hicks
Subject: RE: [External Sender]- Preliminary Abatement Requests
Attachments: AmpZ Champion Data Center HollingsAbatementRequirements.LPBedits.03.27.26.docx

Please see the attached suggestions.

I put in placeholders for the required percentage of local workers and percentage of average weekly wage.

FYI – Angelina County's average weekly wage across all industries for the last four reported quarters is $1000. The average weekly wage for non-public, non-residential construction and data centers in Deep East Texas is about $1500.

Larissa L. Philpot-Brown, AICP
Director of Economic Development
City of Lufkin
Cell: [redacted]
Office: [redacted]

From: Keith Wright <kwright@angelinacounty.net>
Sent: Thursday, March 26, 2026 11:26 AM
To: Kevin Gee <kgee@cityoflufkin.com>; Larissa Brown <lbrown@cityoflufkin.com>; Mark Hicks <mark@Hicks-Co.com>
Subject: [External Sender]- Preliminary Abatement Requests

WARNING** External Sender **WARNING

Redline attachment with any suggestions.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

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AmpZ Champion Data Center Hollings, LLC
Tax Abatement Application
Requests by Angelina County

- A closed loop cooling system is required.
- A road use agreement will be required to repair and upgrade any county roads utilized during or after construction. Repair/Upgrade costs shall be determined by the County Engineer.
- The maximum sound levels upon completion of construction shall not exceed ~~meet~~ state law at the property line. A temporary exemption for this maximum sound level shall be granted during the construction phase.
- Provide $150k per year for 10 years to the County for volunteer fire departments throughout the County. These funds will be added to current County contributions to the departments.
- Local hiring will be prioritized. Construction and all job opportunities will be posted locally, and developers will work with local workforce programs, community colleges, and universities to expand training with hiring prioritization.
    - Suggestion of differentiating between construction and permanent workforce positions.
        - Developer shall use commercially reasonable efforts to ensure no less than 25%(?) of all construction labor hours are performed by County Residents.
        - No less than 25%(?) of all new permanent workforce positions created by developer shall be filled with County residents. This applies to each new hire for the duration of the abatement term.
        - All permanent workforce positions shall be compensated at a cash wage equal to or exceeding 110% (?) of the county average weekly wage as published annual by the Texas Workforce Commission's Quarterly Census of Employment and Wages for Angelina County.
        - Good faith exception – Non-compliance with the local hire thresholds shall not constitute a breach if the developer demonstrates, to the County's reasonable satisfaction that (i)

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the developer made documented good faith efforts to recruit and hire County residents, (ii) an insufficient number of qualified County residents were available for the positions in question, and (iii) developer coordinated with local workforce programs, community colleges, and universities to expand training and hiring prioritization.

- An annual contribution of $500k per year for 10 years to the County's Road and Bridge Department for county road improvement projects throughout the County, prioritizing road improvements near data center or power generation facilities.
- ~~As a baseline standard,~~Within 180 days of the execution of this agreement, the developer ~~should~~ shall provide to the County documentation of ~~commit to protecting an identified amount of land with~~ a legally recorded conservation easement held by a qualified conservation organization or public entity for the purpose of protecting environmentally sensitive areas within the development. A dual purpose may be to provide a protected wetlands area for mitigation of impacted wetlands during construction.
- ~~Provide construction setback of a minimum of 100 feet from property lines with vegetation screening of facilities.~~ No data center building, mechanical equipment yard, emergency generator exhaust stack, or any associated equipment shall be located within 100 feet of any property line, measured from the nearest wall of the structure to the nearest property line. Guard and gate structures are exempted from this setback requirement. A landscape buffer of not less than 50 feet in width shall be provided to include preserved or planted canopy trees and/or understory shrubs.
- ~~Restore property aesthetic appearance along State Highway 103.~~ The developer shall remove, repair, or renovate any existing structures on the property within one year of the execution of this agreement.

Keith Wright

From: Larissa Brown <lbrown@cityoflufkin.com>
Sent: Wednesday, April 8, 2026 10:42 AM
To: Kevin Gee; Keith Wright
Subject: FW: [External Sender]- Memo Draft

See below about the status of AmpZ's energy needs.

From: Raine Cotton <raine@epgindustry.com>
Sent: Thursday, March 26, 2026 11:28 AM
To: Larissa Brown <lbrown@cityoflufkin.com>
Subject: [External Sender]- Memo Draft

WARNING** External Sender **WARNING

MEMORANDUM
To: Local and Regional Leadership
From: Electric Power and Grid LLC (EPG)
Date: March 26, 2026
Re: Project Update and Request for Support – Lufkin Data Center Initiative

---

Project Status Update

We appreciate your continued support in advancing our large-load application with Oncor and helping position this project for success in East Texas.

During our last discussion with Oncor in late 2025, the expected power delivery timeline and cost structure were as follows:

- **75 MW available in 2026**
- **Full 245 MW available in 2027–2028**
- **Estimated utility upgrade cost:** $15–$20 million (via letter of credit or cash)

Following a recent call with Oncor, these assumptions have changed materially:

- **20 MW available in 2026**
- **Balance of 245 MW now projected for 2029–2030**
- **Updated utility upgrade requirement:** approximately **$226 million**

Oncor has indicated that the underlying cause is that the local transmission system is currently underbuilt and cannot support significant new load. As a result, this project would fund substantial infrastructure improvements, including:

- Over **80 miles of transmission upgrades**
- Multiple **substation expansions and enhancements**

Despite this significant increase in cost and extended timeline, our investors and partners remain committed and have indicated their ability to meet these requirements.

Oncor has formally approved the project on its side, and we have accepted the study results. The project is now under review by ERCOT for final approval.

ERCOT Process and Urgency

ERCOT approval is the final step. Historically, ERCOT has largely validated utility findings; however, we understand the current process has slowed, and a new **"batch study" process is scheduled to begin July 15, 2026**.

If this project is delayed and pushed into that batch process, it will materially jeopardize—and likely terminate—the project due to timing and uncertainty.

Strategic Enhancements to the Project

To further strengthen both the project and the regional grid, we have:

- Partnered with a **major publicly traded company** to develop **300 MW of on-site generation**
- Engaged with a separate developer advancing a **600 MW power plant** between Lufkin and Nacogdoches (currently in ERCOT's interconnection queue)

These initiatives are expected to:

- **Strengthen the local transmission system**
- **Improve regional grid reliability and resiliency**
- **Attract additional generation to East Texas**

Regional and Economic Importance

This project represents a unique opportunity for East Texas:

- It is located in an **economically distressed area**, including an **Opportunity Zone**
- It has strong **local community and leadership support**
- It will generate **outsized tax revenue and economic impact** relative to typical urban data center developments

Importantly, rural and East Texas communities have not benefited from data center investment to the same extent as major metro areas. Those metro regions are now experiencing and causing transmission

constraints in part due to concentrated growth. It is both economically and strategically important that East Texas share in this investment and economic benefit.

Request for Support

We respectfully request your assistance in:

- **Engaging with ERCOT leadership** to ensure timely and prudent processing of this application
- Reinforcing the **regional reliability and economic development benefits** of this project
- Supporting efforts to prevent unnecessary delay that could force the project into the upcoming batch study process

---

We remain committed to delivering a project that strengthens the grid, drives economic development, and positions East Texas as a critical hub for next-generation infrastructure. We appreciate your continued leadership and support.

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Keith Wright

From: Joe Dominick <jdominick@wattbridge.info>
Sent: Friday, April 24, 2026 6:39 AM
To: Keith Wright
Subject: RE: Longleaf project

Thank you sir.

Joe Dominick
Director Asset Development

WATTBRIDGE

6246 MCHARD RD.
HOUSTON, TEXAS 77053
[redacted] OFFICE
[redacted] CELL
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From: Keith Wright <kwright@angelinacounty.net>
Sent: Thursday, April 23, 2026 1:57 PM
To: Joe Dominick <jdominick@wattbridge.info>
Cc: Sallie Alexander <salexander@angelinacounty.net>
Subject: RE: Longleaf project

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Sounds good. Sallie, can you place this meeting on the calendar? Thanks.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Joe Dominick <jdominick@wattbridge.info>
Sent: Wednesday, April 22, 2026 1:52 PM
To: Keith Wright <kwright@angelinacounty.net>
Cc: Tom Berry <tberry@angelinacounty.net>
Subject: Re: Longleaf project

Say, May 5 at 11:00?

Joe Dominick
Director Asset Development

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From: Keith Wright <kwright@angelinacounty.net>
Sent: Wednesday, April 22, 2026 2:43:07 PM
To: Joe Dominick <jdominick@wattbridge.info>
Cc: Tom Berry <tberry@angelinacounty.net>
Subject: RE: Longleaf project

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May 5 or 6 works.

Keith

From: Joe Dominick <jdominick@wattbridge.info>
Sent: Wednesday, April 22, 2026 12:49 PM
To: Keith Wright <kwright@angelinacounty.net>
Cc: Thomas Hart <thart@proenergyservices.com>
Subject: Longleaf project

Happy Wednesday Judge Wright.

I was going to be up in the area May 5 - 7 and wanted to see if you had 30 minutes for a Longleaf project update. If so, let me know what day/time works best for you. I also wanted to introduce you to my friend and colleague Tom Hart, he will be taking over most of our development work for Longleaf in the near future.

Thanks,

Joe Dominick
Director Asset Development

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Keith Wright

From: Keith Wright
Sent: Thursday, May 7, 2026 9:49 AM
To: 'Joe Dominick'; Tom Berry
Cc: Thomas Hart; Cliff Oliver
Subject: RE: Longleaf update

Sounds good. Let me know if you need some moral support!

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Joe Dominick <jdominick@wattbridge.info>
Sent: Thursday, May 7, 2026 8:49 AM
To: Keith Wright <kwright@angelinacounty.net>; Tom Berry <tberry@angelinacounty.net>
Cc: Thomas Hart <thart@proenergyservices.com>; Cliff Oliver <coliver@wattbridge.info>
Subject: Longleaf update

Judge Wright, Tom,

Thanks again for meeting up with us this week.

Just as an update:

- We met with Wil up at Pineywoods GCD and plan to get on the board's agenda for August. Therefore, we will put together a permit packet for him in June.
- We met with Kevin and Larissa over at the city yesterday and they are going to work up some indicative pricing for capital improvements and operations for a few of their wells to service the project.

We appreciate the support and will keep you posted on the above and other progress.

Take care,

Joe Dominick
Director Asset Development

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Keith Wright

From: Keith Wright
Sent: Thursday, May 28, 2026 11:01 AM
To: Michael McCracken
Subject: Re: Suggestion for Data Center forum

Nobody currently has a deal. All just speculation at this point.

Keith

Get Outlook for iOS

From: Michael McCracken <micyn2@gmail.com>
Sent: Wednesday, May 27, 2026 11:00:09 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: Suggestion for Data Center forum

Keith,
Maybe we could invite Kristi Skillern as the Chief Contract Officer to update us on the AmpZ deal?
Thanks.
Michael

Michael McCracken

Cell: [redacted]

email: [redacted]

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Keith Wright

From: James Guest <James.Guest@lgbs.com>
Sent: Wednesday, June 3, 2026 3:59 PM
To: Keith Wright
Subject: Angelina County Data Center PILOT v. Abatement
Attachments: Abatement Agreement Fermi incorporated.pdf; 20241010_Duval County Tax Abatement with Dove Wing Energy Center 2024-10-07.pdf

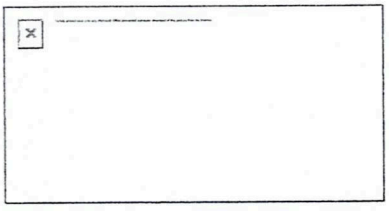
Judge,

I am forwarding two different agreements from Duval and Carson county who used tax abatements in conjunction with a PILOT. I will keep you posted as we review the County's future tax rate concerns. Our firm has the resources to help you navigate these issues. Enjoy the rest of your vacation and safe travels.

Sincerely,

James Guest

Partner
Linebarger Goggan Blair & Sampson, LLP



Main [redacted]
Fax [redacted]
James.Guest@lgbs.com
1316 South John Redditt Dr.
Lufkin, TX 75904
www.lgbs.com

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Keith Wright

From: Ruben Ibarra Jr. <ruben.ibarra@lufkindailynews.com>
Sent: Wednesday, June 10, 2026 5:32 PM
To: Keith Wright
Subject: Re: Question Regarding Highway 103 Data Center

Thank you Keith.

Best Regards,
Ruben Ibarra Jr.
The Lufkin Daily News
ruben.ibarra@lufkindailynews.com

On Jun 10, 2026, at 3:18 PM, Keith Wright <kwright@angelinacounty.net> wrote:

No separate project. I think it will be located at the on chip mill.

From: Ruben Ibarra Jr. <ruben.ibarra@lufkindailynews.com>
Sent: Wednesday, June 10, 2026 1:55 PM
To: Keith Wright <kwright@angelinacounty.net>
Subject: Question Regarding Highway 103 Data Center

Judge Wright,

I was re-watching Tuesday's meeting and I wanted to get clarification on a statement you made.

During the discussion, you mentioned that a data center is already moving forward on Highway 103 West and that the developers "didn't ask us for a thing."

Were you referring to the proposed Amp Z project at the former Southland Paper Mill on Highway 103 East or a separate development altogether?

If it is a separate project, could you provide any additional information about its location, the company involved and the status of the project?

Thank you,

Ruben Ibarra Jr.
The Lufkin Daily News
ruben.ibarra@lufkindailynews.com

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Keith Wright

From: Keith Wright
Sent: Wednesday, June 24, 2026 11:23 AM
To: Keith Wright
Subject: FW: Longleaf - TEF status

From: Mark Hicks <mark@Hicks-Co.com>
Sent: Wednesday, February 18, 2026 5:31 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Longleaf - TEF status

This is great! I hope it moves forward.

-Mark

From: Keith Wright <kwright@angelinacounty.net>
Sent: Tuesday, February 17, 2026 10:01 AM
To: Kevin Gee <Kgee@cityoflufkin.com>; Mark Hicks <mark@Hicks-Co.com>
Cc: 'lbrown@cityoflufkin.com' <lbrown@cityoflufkin.com>
Subject: FW: Longleaf - TEF status

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Keith Wright
Sent: Tuesday, February 17, 2026 9:57 AM
To: 'Joe Dominick' <jdominick@wattbridge.info>
Subject: RE: Longleaf - TEF status

Thanks for the update Joe. I think it would be helpful for you to come by and meet with me and one of the Commissioners for an in person update. We are aware of the data center project at the old papermill and the potential of Wattbridge providing power to them. I believe the sooner we can get that information to the public it would be beneficial in order to counter act the naysayers. Right now I have Monday afternoon, Tuesday afternoon, all day Wednesday open. Just let me know. Thanks.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Joe Dominick <jdominick@wattbridge.info>
Sent: Tuesday, February 17, 2026 8:54 AM

To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Longleaf - TEF status

Judge Wright,

Hope all is well. Just wanted to provide you a short update on our Longleaf project and see if you wanted to have a short meeting to review.

Most of the work and sales we have had in the past year have been with data center customers outside of Texas. The data centers, as you are aware, are looking for power.

We have interest now in our Longleaf site to build out a large data center along with the 600 MW power plant. We are in the process of getting our development funding approved and lining up financial backers. We are also looking at optioning additional property adjacent to the Gillespie property we already have secured. Jeff Medford is helping us with that. I have also reached out to the city and Pineywoods Groundwater Conservation District regarding the additional need for water.

I plan on being in the area later next week if you had time to discuss and see what questions you may have. Adding a data center to the project obviously adds another level of complexity but brings more construction and permanent jobs to the area. Let me know if you want to discuss further at this point.

Take care,

Joe Dominick
Director Asset Development

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Keith Wright

From: Keith Wright
Sent: Wednesday, June 24, 2026 11:43 AM
To: Keith Wright
Subject: FW: Lufkin, TX Site

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Tuesday, March 3, 2026 9:11 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Thanks for the quick response. I know the AMPZ team told me you all were having discussions on the abatements. I let them know so that they are aware. Once we get location of the access and site plan nailed down we'll reach out to discuss further.

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p 912-721-4143 m[redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
vCard | Website | LinkedIn | Facebook | Instagram | YouTube

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From: Keith Wright <kwright@angelinacounty.net>
Sent: Tuesday, March 3, 2026 9:53 AM
To: Forbes, Kevin <forbes.k@tandh.com>
Subject: RE: Lufkin, TX Site

Yes, we are agreeable. It would be part of the tax abatement discussion. There would need to be a road use agreement.

Keith N. Wright, P.E.
County Judge
Angelina County
[redacted]

From: Forbes, Kevin <forbes.k@tandh.com>
Sent: Tuesday, March 3, 2026 8:48 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Good morning Keith,
Wanted to follow up on the request below for accessing off Twin Oaks Road. Let me know if this curb cut would be part of the County's jurisdiction and if so, who we would need to get in touch with to start that discussion.

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p 912-721-4143 m[redacted]
e forbes.k@tandh.com
a 50 Park of Commerce Way | Savannah, GA 31405
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From: Forbes, Kevin
Sent: Wednesday, February 11, 2026 5:28 PM
To: 'Keith Wright' <kwright@angelinacounty.net>
Subject: RE: Lufkin, TX Site

Keith,
Good afternoon. We are considering an access point off of Twin Oaks Rd. at the Lufkin site, and wanted to confirm if this is in your jurisdiction? If so, what's the process/timing for a curb cut?

Thanks!

KEVIN FORBES, PE | Project Manager
THOMAS & HUTTON
p 912-721-4143 m[redacted]
e forbes.k@tandh.com
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Keith Wright

From: Keith Wright
Sent: Thursday, May 28, 2026 11:01 AM
To: Michael McCracken
Subject: Re: Suggestion for Data Center forum

Nobody currently has a deal. All just speculation at this point.

Keith

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From: Michael McCracken <micyn2@gmail.com>
Sent: Wednesday, May 27, 2026 11:00:09 AM
To: Keith Wright <kwright@angelinacounty.net>
Subject: Suggestion for Data Center forum

Keith,
Maybe we could invite Kristi Skillern as the Chief Contract Officer to update us on the AmpZ deal?
Thanks.
Michael

Michael McCracken

Cell: [redacted]

email: [redacted]

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